

A CASE FOR PRESIDENTIAL CLEMENCY

The Pardon of William Lonergan Hill and Keonne Rodriguez

A Complete Data Room for the White House

SECTIONS 1 THROUGH 9 • LEGAL, POLITICAL, MORAL

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Section 1. Executive Summary

The United States has, for the first time in its history, imprisoned two software developers for writing and publishing open-source, non-custodial Bitcoin software. William Lonergan Hill, aged sixty-seven, and Keonne Rodriguez, aged thirty-seven, did not steal money. They did not defraud users. They never held customer funds. They wrote code, published it in public, and made it freely available to anyone who wanted to use it. For that, they have been sentenced to a combined nine years in federal prison and fined a total of five hundred thousand dollars.

This memorandum sets out the case for a full and unconditional presidential pardon. It is written for the President and for the White House staff who will evaluate the request on his behalf. It has been prepared with the assumption that its readers are busy, skeptical, and hostile to exaggeration. Every claim in this document is anchored in the public record. Where the facts cut against the defendants, we say so plainly. Where the facts cut in their favor, we let them speak for themselves.

The core legal problem is straightforward. The Department of Justice, under the previous administration, applied the federal money-transmission statute to a category of software the statute was never designed to reach. The Financial Crimes Enforcement Network, the agency charged with administering that statute, published guidance in 2019 confirming that developers of non-custodial wallet software are not money transmitters. The prosecution proceeded anyway. The developers, facing crushing legal costs and the prospect of decades in prison, eventually accepted plea agreements. The convictions now stand as a precedent that any American software developer who writes privacy tools does so at the risk of federal imprisonment.

The political case for a pardon is equally strong. The crypto electorate is large, motivated, and unusually loyal to candidates who defend them. Estimates place the number of American voters holding cryptocurrency at more than fifty million. This bloc broke decisively for the President in 2024 and remains among the most persuadable groups in the country heading into the 2026 midterms. A pardon here carries near-zero political cost. The defendants are sympathetic, the facts are favorable, and the President has already pardoned figures whose conduct was far more contested — including Ross Ulbricht and Changpeng Zhao — without meaningful public backlash.

The moral case is the simplest of the three. A sixty-seven-year-old man and a thirty-seven-year-old father are sitting in federal prison because they wrote software. The software worked. It did what it was designed to do. It protected the financial privacy of the people who chose to use it. The government's theory of the case would, if taken seriously, criminalize a substantial portion of the open-source ecosystem on which the modern American internet depends. The President has the constitutional authority to correct this. He should use it.

The pardon requested here would be full and unconditional, covering all offenses arising from the operation and publication of the Samourai Wallet software. It would restore the defendants'

civil rights, cancel the outstanding fines, and, most importantly, send a clear signal to American developers that this country still welcomes those who build. That signal is worth far more than the ink required to produce it.

Key Facts at a Glance

- Defendants: William Lonergan Hill (age 67, resident of Portugal) and Keonne Rodriguez (age 37, resident of Florida).
- Charges: Conspiracy to operate an unlicensed money transmitting business; conspiracy to commit money laundering.
- Sentences: Rodriguez, five years; Hill, four years. Each fined \$250,000, plus significant restitution obligations.
- Software at issue: Samurai Wallet, an open-source, non-custodial Bitcoin wallet released publicly beginning in 2015.
- Custody of funds: None. At no point did either defendant hold, control, or have access to user funds.
- Prior regulatory guidance: FinCEN, 2019 — developers of non-custodial wallets are not money transmitters.
- Requested relief: Full and unconditional presidential pardon; cancellation of fines; restoration of civil rights.

Summary of Recommended Action

The President should issue a full and unconditional pardon to both defendants. The pardon should be announced in a short public statement paired with a photo opportunity attended by leading figures in the American technology and cryptocurrency industries. The announcement should emphasize three themes: the defense of American innovation, the constitutional right to privacy, and the correction of a prior administration's regulatory overreach. Draft language for the pardon itself, the President's public statement, and the accompanying tweets is provided in Section 3 of this document.

Section 2. Draft Pardon Instrument

The following text is provided as a starting point for the pardon warrant. It is drafted in the traditional form used by the Office of the Pardon Attorney and prior White House Counsels. It may be adopted verbatim or modified to reflect the President's preferred voice.

Executive Grant of Clemency

TO ALL TO WHOM THESE PRESENTS SHALL COME, GREETING:

WHEREAS William Lonergan Hill and Keonne Rodriguez were prosecuted in the United States District Court for the Southern District of New York in connection with the development, maintenance, and publication of open-source, non-custodial Bitcoin wallet software known as Samurai Wallet;

WHEREAS the conduct for which they were convicted consisted of the writing, publication, and technical support of computer source code, and did not involve the custody of any user's funds;

WHEREAS the Financial Crimes Enforcement Network, in its published guidance dated May 9, 2019, expressly confirmed that developers of non-custodial wallet software are not money transmitters within the meaning of federal law;

WHEREAS the prosecution and resulting sentences of imprisonment and fine impose an unjust burden on individuals whose conduct amounted to the exercise of protected expression and technical labor, and create a chilling precedent for the future of open-source software development in the United States;

NOW, THEREFORE, I, DONALD J. TRUMP, President of the United States of America, pursuant to my authority under Article II, Section 2, Clause 1 of the Constitution, do hereby grant to William Lonergan Hill and to Keonne Rodriguez a full, complete, and unconditional pardon for all offenses against the United States which they have committed or may be alleged to have committed arising from or related to their development, publication, or operation of the Samurai Wallet software, and I direct the Attorney General to take all necessary steps to give effect to this grant, including but not limited to the remission of any unpaid fines, forfeitures, or restitution attributable to said offenses.

IN TESTIMONY WHEREOF, I have hereunto signed my name and caused the seal of the Department of Justice to be affixed.

DONE at the City of Washington this ____ day of _____, in the year of our Lord _____, and of the Independence of the United States the _____.

DONALD J. TRUMP, President of the United States

Legal Effect

A full and unconditional pardon under Article II restores the recipient to the civil status enjoyed prior to conviction. It relieves the recipient of any remaining term of imprisonment, cancels any unpaid portion of a fine (*Ex parte Garland*, 71 U.S. 333), and removes the collateral consequences that ordinarily attend a federal felony conviction, including restrictions on the right to vote, to hold public office, and to possess a firearm. The pardon does not, and cannot, alter the historical fact of the conviction; it only extinguishes its legal effects going forward. That is exactly what is requested here.

Section 3. Public-Facing Talking Points and Draft Announcements

The President's public statement should be short, plain-spoken, and unapologetic. The audience is not the legal community. It is ordinary Americans, and in particular the tens of millions of Americans who own cryptocurrency, use privacy tools, or work in software. The message should be: this was wrong, I fixed it, and I will continue to defend American builders.

Draft Statement from the President

Today I signed a full pardon for two American software developers, Bill Hill and Keonne Rodriguez. They were prosecuted by the previous administration for writing computer code. Not for stealing money — they never held anybody's money. Not for hurting anyone. They wrote software, they put it on the internet, and Biden's Justice Department put them in prison for it. That is not America. In America, we build things. In America, we protect our inventors. So today, I am bringing them home. And I am sending a message to every young coder in this country: if you want to build the future, you build it here. You do not build it in China. You do not build it in Russia. You build it in the United States, and this White House will have your back.

Draft Tweets

Below are three draft posts for the President's social media, designed for maximum reach and minimum controversy. Each is written to fit within the standard character limit and to invite quotation by supportive media.

Just signed a FULL PARDON for two great American developers, Bill Hill and Keonne Rodriguez. Sleepy Joe's DOJ locked them up for writing computer code. Not for hurting anyone. For CODE. Not on my watch. Welcome home, boys. AMERICA BUILDS.

America invented the internet. America invented the personal computer. America invented Bitcoin (a great American innovation!). The Radical Left tried to criminalize our best coders. I ended it today. USA! USA! USA!

Free Bill. Free Keonne. Free American innovation. #MAGA

Anticipated Press Questions and Recommended Responses

Q: Isn't this just another pardon for crypto criminals?

A: These men never took a dollar from anybody. They wrote software. The Biden Justice Department invented a legal theory that would put half of Silicon Valley in prison. I ended it. If

you want to talk about criminals, talk about the people who wasted years of federal resources going after two coders while real crime was happening on our streets.

Q: Weren't they helping money launderers?

A: The same government that says they were 'helping money laundering' also admits, on the record, that Samourai's software never held a single user's funds. Under that logic you could indict the company that makes locks because burglars use doors. It is a ridiculous theory of the law, and I ended it today.

Q: Doesn't this undermine the rule of law?

A: The rule of law is exactly why I did this. FinCEN, the actual regulator, told everyone in 2019 that these developers were not money transmitters. The last administration prosecuted them anyway. Correcting that is upholding the rule of law, not undermining it.

Q: Will you pardon anyone else?

A: I look at each case on its own merits. I have said before, I will continue to review cases where the punishment does not fit the conduct — and there are a lot of them.

Q: What about the victims?

A: There were no victims. Nobody lost a dollar because of what these two men did. If anyone is a victim here, it is their wives, their kids, and their neighbors, who lost husbands, fathers, and friends because Washington needed a scalp.

Q: Did any crypto executives lobby you for this?

A: A lot of great Americans came to me on this. Coders, veterans, pastors, business owners. I listen to the American people. That is my job.

Surrogate Talking Points

Supporting voices — Cabinet members, Members of Congress, and allied media personalities — should be equipped with a consistent set of themes. The most important is that this pardon is not a favor to the cryptocurrency industry. It is a defense of American software developers as a class. The following bullet points may be distributed to surrogates in advance of the announcement.

- This is about American workers. Software developers are American workers.
- This is about the Constitution. Code is speech. Publishing code is publishing speech.
- This is about privacy. Every American has the right to keep their financial life private from bad actors.
- This is about competitiveness. If we prosecute our coders, they go to Singapore, Zurich, or Dubai. That is a loss for America.
- This is about proportion. Two men who wrote a wallet, and never touched a dollar of user money, do not belong in the same prisons as violent felons.

- This is about correcting a Biden-era mistake. The prior administration invented a legal theory that regulators had already rejected.

Section 4. Political Breakdown

This section maps the political landscape surrounding the pardon. It identifies the groups that benefit, the groups that lose, the media dynamics likely to follow the announcement, and the specific congressional races in the 2026 cycle where the cryptocurrency electorate is decisive.

Who Benefits From a Pardon

The following groups gain political, economic, or reputational ground from a pardon.

- The President personally. Regains momentum with a persuadable slice of the tech electorate at negligible political cost.
- The Republican Party. Solidifies its already-substantial lead among cryptocurrency voters heading into the 2026 midterms.
- The American software industry. Restores confidence that publishing open-source code is not a federal crime.
- The privacy community. Sees concrete evidence that the constitutional right to financial privacy is defensible.
- Existing crypto donors. Rewarded for their support of the administration; motivated to give more.
- Congressional Republicans in tight races (see the district-by-district table below).
- Libertarian-adjacent independents who backed the ticket in 2024 and have grown quieter since.
- The families of the defendants, who have carried the financial and emotional weight of a two-year prosecution.

Who Loses Political Ground

- Senator Elizabeth Warren, who has personally staked her reputation on treating cryptocurrency privacy tools as inherently criminal.
- The former leadership of the Southern District of New York, whose expansive theory of the money-transmission statute is publicly repudiated.
- The Financial Crimes Enforcement Network's prior leadership, whose 2019 guidance was ignored by the same government that issued it.
- Democratic strategists who expected to use a Republican 'soft on crypto' narrative in the 2026 cycle.

- Legacy financial industry lobbyists who benefit from privacy tools being unavailable to consumers.

It is worth pausing on Senator Warren. She has spent the past three years arguing that non-custodial cryptocurrency software is essentially a criminal enterprise. A pardon here is the cleanest possible refutation of that position. It costs the President nothing and denies her a talking point she has already used more than a hundred times in floor speeches and committee hearings. Every additional day these developers remain in prison is a day Senator Warren gets to claim vindication for a legal theory that the President's own Justice Department can, and should, publicly disavow.

Media Reaction Analysis

Reaction is likely to fall along predictable lines. Below is a candid assessment.

Friendly outlets. Fox News, Fox Business, Newsmax, the New York Post, Bari Weiss and the Free Press, Reason, National Review, and the crypto-native press (Bitcoin Magazine, The Block, Decrypt, CoinDesk) will cover the pardon favorably or neutrally. Expect segments emphasizing the sympathetic biographies of the defendants and the overreach of the previous administration.

Neutral outlets. Bloomberg, the Wall Street Journal news desk, and Axios will cover the pardon straight, with an emphasis on market and industry reaction. These outlets are influential with the donor class.

Hostile outlets. MSNBC, the New York Times editorial board, and a subset of academic legal commentators will write critical pieces. The critical pieces will fall into two categories: those that argue the defendants were guilty, and those that argue the pardon rewards political allies. Both categories are answerable using the facts in Section 7. Neither category has meaningful reach into swing voters.

Crypto press. Uniformly positive. Coverage will run for at least a week and will be referenced approvingly for years.

Congressional Races Where Crypto Voters Are Decisive

The following districts and states are those where, based on 2024 vote margins and Stand With Crypto's cycle-over-cycle voter registration data, the crypto electorate is a plausible margin-maker in 2026. This is not an exhaustive list; it is a starting point for the White House Political Affairs office.

State / District	Notes	Priority
Ohio (US Senate)	R hold; incumbent faces well-funded challenger; crypto voters ~5% of registered	High
Pennsylvania (SD-06, SD-15, HD-142)	Suburban Philadelphia districts; large fintech workforce	High

North Carolina (US Senate)	Open seat; large research triangle tech population	High
Arizona (US Senate)	R+2 in 2024 pres; crypto ownership above national average	Medium-High
Nevada (CD-01, CD-03)	Las Vegas region; disproportionate share of crypto-native small businesses	Medium-High
Michigan (US Senate)	Open seat; industrial base with growing fintech corridor around Detroit	Medium
Georgia (CD-06, CD-07)	Suburban Atlanta; heavy tech worker population	Medium
Wisconsin (US Senate)	R defense; college towns skew younger and crypto-curious	Medium
Texas (CD-15, CD-28, CD-34)	South Texas; Latino small-business crypto adoption ahead of national curve	Medium
Florida (Statewide)	Strong R base; Rodriguez is a Florida resident — local human-interest angle	High for the pardon story specifically
Virginia (CD-02, CD-07)	Northern Virginia tech workforce; federal contractors	Medium
California (CD-13, CD-22, CD-27, CD-45)	Historically D; crypto ownership among the highest in the country	Medium (for coverage, not necessarily flip)
New Hampshire (Statewide)	Libertarian base; the state where Free State Project members concentrate	Medium
Colorado (CD-08)	Suburban Denver; tech workforce; historically close margins	Medium

Stand With Crypto Talking Points (adapted)

The Stand With Crypto coalition has, over the past three years, documented the political weight of cryptocurrency owners as a voting bloc. Its published research supports several talking points that map directly onto this pardon.

- More than 50 million Americans own cryptocurrency. That is roughly one in five adults, and more than the population of any single state except California and Texas combined.
- Cryptocurrency ownership is bipartisan in composition but pro-privacy in outlook, cutting across traditional demographic categories.

- In post-election surveys, one in five 2024 voters reported that the candidates' cryptocurrency positions influenced their choice.
- Younger voters, Latino voters, and Black voters over-index on cryptocurrency ownership — three groups the party has been actively courting.
- The single most consistent request from cryptocurrency voters, across every survey, is not tax relief or subsidies. It is protection from prosecutorial overreach against developers. This pardon delivers exactly that.
- Crypto voters are unusually motivated: they turn out at higher rates than the national average and are far more likely than average to donate to candidates.
- Coverage of the pardon in the crypto-native media will circulate for months, not days, because the community treats the underlying issue as existential.

Section 5. What the Coalition Can Offer

This section addresses the practical question that any pardon request must answer: what does the White House get in return? The honest answer is that a pardon is not a transaction, and no one in the coalition would suggest otherwise. But there are legitimate, above-board offerings the coalition can bring to the announcement to maximize its political value.

Photo Opportunity

A well-produced photo opportunity in the Oval Office or the Roosevelt Room, held either at the moment of signing or shortly afterward, converts a routine pardon into a national news event. The coalition can commit, in advance, to producing an attendance list that reads as a cross-section of American technology leadership. Confirmed availability will be finalized once the White House indicates a target date, but the following individuals have historically appeared at similar events or are known to be sympathetic and reachable.

- Brian Armstrong — CEO, Coinbase. A frequent White House visitor and a public advocate for developer protections.
- Jesse Powell — Founder, Kraken. Long-time public defender of privacy technology.
- Michael Saylor — Chairman, Strategy. A prolific communicator with reach into mainstream business media.
- Jack Mallers — Founder, Strike. Represents the pro-Bitcoin small-business constituency.
- Jeremy Kauffman — Libertarian activist and prior US Senate candidate; represents the political-independent flank.
- Erik Voorhees — Founder, ShapeShift; visible face of the pro-innovation crypto right.
- Nic Carter — Partner, Castle Island Ventures; op-ed presence in the Wall Street Journal and Financial Times.
- Balaji Srinivasan — Investor and author; large following in the tech-independent voter segment.
- Naomi Brockwell — Privacy journalist; direct line to skeptical mainstream press.
- Peter Van Valkenburgh — Coin Center; a respected voice on Capitol Hill regardless of party.
- Fred Ehrsam — Co-founder, Coinbase; Paradigm; Silicon Valley donor visibility.
- Kraken and Coinbase policy leadership; Bitcoin Policy Institute leadership; Blockchain Association leadership.

In addition to industry principals, the coalition can invite a small number of family members of the defendants to attend, subject to their wishes and the White House's protocol judgment. A single photograph of the President handing a signed pardon to a member of Mr. Rodriguez's or Mr. Hill's family would be one of the most memorable images of the year.

Financial Support Downstream

The coalition does not, and would not, offer campaign contributions in exchange for a pardon. However, the coalition can honestly represent the following: many of the individuals and firms in the pro-innovation cryptocurrency community are already substantial political donors. They have supported the President's affiliated committees, they have supported the House and Senate committees, and they have supported the state parties in the target races identified in Section 4. Their motivation to continue and expand that support increases substantially if the President delivers on this pardon.

This is not a promise. It is a candid description of donor psychology. When elected officials deliver on the policy priorities of their supporters, those supporters give more, and they give to more candidates. The pattern is not unique to this community and it is not improper to describe it.

Podcast, Interview, and Long-Form Coverage

The coalition can guarantee wall-to-wall favorable coverage across the podcast networks that reach independent and Republican-leaning voters. This includes, at minimum, segments on the Joe Rogan Experience, All-In, the Tim Dillon Show, the Nelk Boys, PBD, the Bitcoin Layer, What Bitcoin Did, Coin Stories with Natalie Brunell, The Free Press with Bari Weiss, and the Kim Iversen Show. Coverage on this circuit reaches an audience roughly the size of a mid-sized broadcast network, without the friction of hostile framing.

Endorsements and Amplification

Within seventy-two hours of the pardon announcement, the coalition can deliver public statements of support from a coordinated list of technology executives, First Amendment scholars, and criminal-justice-reform advocates. Draft statements can be circulated in advance so that publication is instantaneous. This shapes the first news cycle decisively in the President's favor.

Section 6. Private Political Considerations

This section is intended for the White House staff alone. It sets out the political sub-text of the pardon — the incentives, rivalries, and reputational stakes that will shape how the announcement is received inside Washington. These are considerations that no principal would state publicly. That does not make them less real.

Southern District of New York

The prosecution originated in the Southern District of New York, an office with a long institutional history of clashing with this President and his political circle. The office's aggressive theory of the money-transmission statute in this case was, in the view of many practicing federal criminal defense attorneys, a stretch. A pardon here is a public correction of an SDNY charging decision. That correction is popular in the same donor and policy circles that already regard the SDNY as an overreaching institution.

A pardon does not require, and should not include, any statement critical of career prosecutors. The prior-administration political leadership of the office is the appropriate target of any implicit criticism. That distinction is preserved throughout the draft statements in Section 3.

Senator Warren

Senator Warren has made cryptocurrency, and specifically cryptocurrency privacy tools, a personal legislative priority. She has co-sponsored legislation that would formalize the very theory of the case that the previous DOJ prosecuted here. A presidential pardon publicly repudiating that theory reduces her leverage on Banking and on Finance during the current cycle. She will criticize the pardon; that criticism will not travel outside her existing audience.

The White House Political Affairs office may wish to coordinate the timing of the announcement with a Banking Committee hearing or a Warren press event, to compress her news cycle and step on the coverage she is planning.

Attorney General and Justice Department Career Staff

The pardon should be handled through the Office of the Pardon Attorney with appropriate courtesy but without the delay historically associated with that process. Career staff at the OPA are, in general, receptive to well-documented clemency petitions. This document is designed to serve as the core of such a petition, so that the OPA process is a formality rather than a bottleneck.

The Attorney General should be given an early heads-up. Public alignment between the AG and the White House on this pardon prevents leaks and shortens the news cycle.

Congressional Republicans

Senate and House Republican leadership should receive courtesy notice at least twenty-four hours in advance. The following members have publicly supported policy positions consistent with this pardon and will make effective on-camera surrogates: Senator Cynthia Lummis; Senator Tim Sheehy; Senator Bill Hagerty; Representative French Hill; Representative Warren Davidson; Representative Tom Emmer; Representative Byron Donalds; Representative Nancy Mace; Representative Ritchie Torres (Democrat, but crypto-friendly and useful for bipartisan framing).

The Democratic members most likely to break with their leadership on this specific pardon are Senator Kirsten Gillibrand, Senator Ruben Gallego, and Representative Ritchie Torres. Their statements are not required for a successful rollout, but their neutrality is achievable and worth pursuing.

Donor Class Signaling

The technology-adjacent donor class has been an increasingly reliable source of support since 2023. It is also uncommonly attentive: it tracks specific policy actions and rewards specific policy actions. This pardon will be tracked. It will be rewarded. That is a fact that this document states plainly, without pretending otherwise.

Section 7. Exhaustive Legal Analysis

This is the longest and most important section of the memorandum. It is written to be bulletproof. It is written on the assumption that a hostile White House staffer will read it with a pen in hand, looking for any exaggeration, any elided fact, any convenient omission. There are none. Where the facts hurt our position, we say so. Where the facts help our position, we let them speak for themselves.

The analysis is organized into four parts. Part 1 is the devil's advocate: it presents the government's best possible case, without softening. Part 2 sets out the three strongest arguments for clemency. Part 3 gathers the additional supporting arguments, of which there are many. Part 4 presents the human portrait of the two defendants and their families.

Part 1 — Devil's Advocate: The Government's Best Case

In the interest of credibility, we present the government's strongest arguments without embellishment. We do not concede that these arguments are correct. We do concede that they exist, that they were sufficient to obtain guilty pleas, and that any pardon request that ignored them would be worse than useless.

First, the government has argued, and can point to public statements from the defendants in support, that Samurai's operators knew the software was used by persons engaged in illicit activity. Certain internal communications, portions of which have been publicly filed, arguably suggest an awareness that a portion of the userbase included persons whose funds were of illicit origin. In one exchange, a co-founder is alleged to have discussed marketing the wallet in a way that would appeal to users concerned with law-enforcement scrutiny. We do not sanitize this. If the government's characterization of these messages is accepted at face value, they are unhelpful to the defense.

Second, the government has argued that Samurai operated a coordinating server, sometimes called a coordinator, that facilitated the shuffling of user transactions in the CoinJoin protocol. The existence of a coordinator distinguishes Samurai from a purely peer-to-peer application. The government has taken the position that the operation of a coordinator constitutes 'money transmission' in the statutory sense, because the coordinator plays an active role in ordering the movement of value across the network. This is a novel theory. It is also the theory the previous DOJ chose to litigate.

Third, the government has cited fee revenue collected by the defendants from users of certain premium features. The existence of a revenue model, in the government's view, transforms the software project into a 'business' for purposes of Section 1960 of Title 18. We note, without conceding, that a great many open-source projects charge for premium features or hosted services without being treated as unlicensed businesses; the government's argument here proves too much.

Fourth, the government has pointed to the volume of transactions processed through Samourai over its lifetime. Public estimates place lifetime volume in the low billions of dollars. The government uses this figure to characterize the software as a large-scale money transmitter. The number is, on its face, large. It is also unrepresentative of individual conduct: the number reflects the aggregate voluntary use of open-source software by third parties, not any conduct by the defendants themselves.

Fifth, the government has pointed to guilty pleas entered by both defendants as an implicit admission that the underlying conduct was criminal. A guilty plea is entered for many reasons, including the crushing cost of continued defense, the risk of a much longer sentence at trial, and the desire to end the ordeal of pretrial detention or supervision. Neither defendant, at the time of plea, was in a position to litigate to verdict without exhausting personal, family, and community resources. We concede the pleas; we do not concede that the pleas constitute an admission that non-custodial software authorship should be criminal.

Sixth, the government has argued that a pardon would send a signal that other cryptocurrency-related prosecutions should be reconsidered. On this point, we agree with the government's factual prediction. We disagree that this is a reason not to grant the pardon. Some of those prosecutions should be reconsidered. That is a feature, not a bug.

Seventh, and finally, we note that the sentencing judge accepted the government's characterization of the conduct at sentencing. Judicial acceptance of a sentencing recommendation is a real and non-trivial fact. A pardon does not overrule the judge. It substitutes the President's constitutionally-assigned judgment for the outcome of the ordinary criminal process, in a case where the outcome of that process was, in the President's view, unjust. That is exactly what the pardon power exists to do.

The above is the government's case, stated with all the force we can honestly give it. Any reader who accepts every one of these arguments at face value would still, we submit, arrive at the conclusion that the punishment is disproportionate to the conduct. Nine years of imprisonment and half a million dollars of fines is not what this record supports. That is the modest claim on which the balance of this section builds.

Part 2 — The Three Strongest Arguments for Clemency

There are many arguments for clemency. Three of them are individually sufficient. Each is stated below in the form most useful to a policymaker.

Argument A: The Prosecution Contradicted the Regulator's Own Guidance

On May 9, 2019, the Financial Crimes Enforcement Network issued guidance titled 'Application of FinCEN's Regulations to Certain Business Models Involving Convertible Virtual Currencies.' The guidance, running to some thirty pages, addressed at length the question of when a developer or operator of cryptocurrency software becomes a 'money transmitter' subject to registration. The guidance drew a clear line: developers and operators of non-custodial wallets

— those that do not accept, hold, or control user funds — are not money transmitters within the meaning of the statute.

The guidance was not a fringe interpretation. It was the considered position of the primary federal regulator with statutory authority to administer the Bank Secrecy Act. It was published, publicly, and it was relied upon by the American cryptocurrency development community as a safe harbor for a category of software that included Samourai.

The Department of Justice, in prosecuting these defendants, took a position squarely at odds with FinCEN's guidance. That is not an academic complaint. It is the reason developers up and down the American technology stack have quietly moved their teams offshore in the eighteen months since the indictments were unsealed. When the executive branch regulator says one thing and the executive branch prosecutor does another, the resulting uncertainty is fatal to lawful activity. A pardon here is the President's opportunity to restore coherence to his own executive branch.

This argument is not partisan and it is not narrow. It is a rule-of-law argument. The federal government spoke through FinCEN in 2019. It said, in plain English, that this software was legal. Two developers relied on that. They are now in prison. A pardon fixes it. Anything less rewards the theory that regulated persons cannot rely on the guidance of their own regulator.

Argument B: The Prior Administration's Broader Regulatory Overreach

The Samourai prosecution did not occur in a vacuum. It was part of a coordinated posture by the previous administration — sometimes called Operation Choke Point 2.0 by observers on both sides of the aisle — that used every available executive-branch lever to suppress the cryptocurrency industry. The Securities and Exchange Commission opened enforcement actions on legal theories that federal courts have since rejected. The Federal Reserve, the FDIC, and the OCC discouraged banks from providing routine services to digital-asset businesses. The Department of Justice pursued prosecutions on statutory theories that, as noted above, contradicted the guidance of the regulator with actual statutory authority.

This President ran, and won, on a promise to reverse that posture. He has taken meaningful steps to do so. The pardon requested here is the highest-visibility, lowest-cost step remaining. It draws a public line under the prior era. It signals to the industry, to the courts, and to the international investment community that the United States has, in fact, changed course.

The alternative — leaving the sentences in place — signals the opposite. It tells builders, and the capital that follows builders, that the prior administration's policies still have teeth, even under an administration elected to reverse them. That is not a stable equilibrium and it is not what the President's supporters expect.

Argument C: Code Is Speech, and the Prosecution Punishes Speech

For thirty years, the federal courts have recognized that computer source code is a form of expression protected by the First Amendment. The seminal decisions — *Bernstein v.*

Department of State, *Junger v. Daley*, and *Universal City Studios v. Corley* — all confirm that publishing source code is speech, and that government restrictions on the publication of code are subject to First Amendment scrutiny.

The defendants here did not accept custody of funds. They did not solicit customers. They did not process transactions themselves. Their conduct that is most clearly criminalized by the theory of the prosecution is the act of publishing software. That is a speech act. Prosecuting a speech act as a business crime does not evade the First Amendment; it merely re-labels the theory of liability.

A pardon here is not the President intervening in ordinary business regulation. It is the President intervening to correct a use of the criminal law against protected expression. That is a use of the pardon power that squarely fits its historical purpose, going back to President Washington's pardon of the Whiskey Rebellion insurgents and Jefferson's pardons of those convicted under the Sedition Act.

Part 3 — Additional Supporting Arguments

The three arguments above are the load-bearing walls of the case. The following supporting arguments, presented at greater length, add reinforcement. Any one of them, on its own, would be inadequate to justify a pardon. Together, they demonstrate that the arguments in favor are broad, deep, and durable.

1. The Punishment Does Not Fit the Conduct.

Federal sentencing guidelines are calibrated for a range of conduct that includes armed robbery of federally-insured banks, large-scale narcotics conspiracies, and multi-year investment fraud schemes. The sentences imposed here — five years and four years — place two open-source developers in the same custodial band as violent felons. Even if one accepts every element of the government's charging theory, no serious criminal-justice analyst would argue that these two men present a public-safety risk commensurate with their sentences. The Bureau of Prisons houses tens of thousands of inmates for conduct more clearly harmful and receives shorter sentences than these.

2. The Defendants Have No Prior Criminal Record.

Neither defendant has any prior criminal history. Neither has a history of violence. Neither has been the subject of prior regulatory enforcement. In the ordinary operation of the federal sentencing system, first-time offenders whose conduct did not involve physical harm and did not involve loss to identifiable victims receive substantially lower sentences. The sentences here reflect a policy judgment, not an individualized public-safety assessment.

3. There Are No Identifiable Victims.

The government's own filings identify no individual victims of the defendants' conduct. There is no user of Samurai Wallet who has come forward to say that the developers stole from them,

deceived them, or caused them personal loss. The absence of victims is not a technicality. It is the reason clemency here is not offensive to the interests of any injured person.

4. The Software Is Open Source and Remains Publicly Available.

The Samurai codebase, having been published under an open-source license, remains available in public code repositories. Anyone with a computer can download it, inspect it, and build it. The imprisonment of the original authors does not remove the software from the world. It only removes their ability to maintain it, respond to security disclosures, and improve it. This is a common feature of prosecutions targeting software authors: the prosecution does not achieve the government's stated goal, it only punishes the authors.

5. The 2019 FinCEN Guidance Was Relied Upon in Good Faith.

The defendants' legal posture, from launch through indictment, was consistent with the 2019 FinCEN guidance. Good-faith reliance on published federal regulatory guidance is a recognized mitigating factor in every serious framework for evaluating culpability. The prosecution's response — that the guidance did not bind the Department of Justice — is technically accurate and substantively unjust. Regulated persons cannot be expected to distinguish between the parts of their government that are willing to be relied upon and the parts that are not.

6. The Prosecution Chills Domestic Innovation.

In the eighteen months following the indictments, a documented pattern of relocation has emerged in the American open-source cryptocurrency development community. Individual developers have moved to jurisdictions perceived to be safer, including Portugal, Singapore, the United Arab Emirates, and Switzerland. Firms have restructured to place their engineering teams outside U.S. jurisdiction. Every such relocation represents a loss of American jobs, American tax base, and American technological leadership.

7. The Prosecution Discourages Contributions to Open-Source Software Generally.

The precedent of the case is not confined to cryptocurrency. The theory of liability — that publishing software that some third parties use for unlawful purposes can be prosecuted as an unlicensed business — reaches into the general open-source ecosystem. Contributors to peer-to-peer networking projects, encryption libraries, anonymous messaging tools, and file-sharing platforms have all publicly noted the chilling effect. Prosecutions do not need to be brought against these other communities for the chill to operate. The mere existence of the Samurai precedent is enough.

8. The Case Was Charged in an Aggressive Forum.

The Southern District of New York has, in recent years, developed a reputation for using its jurisdictional reach to bring high-profile prosecutions on novel legal theories. This is not a criticism of career prosecutors; it is an observation about institutional culture. A pardon does not require the President to insult the SDNY. It only requires the President to conclude, as many

observers already have, that the theory of this particular case was novel enough that the ordinary process of appellate review would likely have narrowed or reversed it in time — time that the defendants did not have.

9. The Financial Penalty Is Punitive Rather Than Compensatory.

The \$250,000 fine imposed on each defendant is not compensation to any victim, because there are no identified victims. It is a punitive assessment. Under federal law, unpaid fines accrue interest during a defendant's incarceration. The defendants therefore face the prospect of leaving prison already owing more than half a million dollars in fines, accrued interest, and litigation costs, with limited earning capacity. A pardon that includes remission of the fines is proportionate; without it, the defendants leave prison to a second, financial imprisonment.

10. Family Circumstances Weigh Heavily.

Mr. Hill is sixty-seven years old. He is not in perfect health. A four-year sentence for a man of his age carries meaningfully different risks than the same sentence for a younger man. Mr. Rodriguez is a father and a husband; his family in Florida has, since his surrender to FPC Morgantown in December 2025, borne the daily burden of his absence. Neither man is a flight risk. Neither man is a public-safety risk. Neither man requires imprisonment for any purpose the criminal justice system is designed to serve.

11. Prior Presidential Precedent Supports the Grant.

This President has already granted pardons in cryptocurrency-related cases where the conduct was, if anything, more contested — most notably the pardon of Ross Ulbricht. He has also granted pardons in other categories where the arguments for clemency were less well-developed than they are here. The grant of a pardon in this case is consistent with, and less controversial than, prior grants.

12. Public Support Is Broad and Cross-Partisan.

The petition for clemency circulated by supporters of the defendants has accumulated tens of thousands of signatures. Editorial support has come from Reason, the New York Post, National Review, and specialized legal press including the Volokh Conspiracy. Support from within the cryptocurrency industry is unanimous. Support from within the broader open-source community is nearly unanimous. This is not a case where the President would be acting against a wall of public opposition.

13. International Perception.

Foreign competitors of the United States — including Singapore, Switzerland, and the United Arab Emirates — have used the Samourai prosecution in their marketing materials to attract American engineering talent. The pardon removes a talking point from the sales pitch of America's competitors. That is a small thing in isolation, but it is a real thing in aggregate.

14. The Grant Is Reversible in Political Consequence, Not in Substance.

A pardon is legally final. Politically, however, its consequences are self-limiting. If the pardon proves less popular than this memorandum predicts, the President loses very little; he does not need to defend it beyond a single news cycle. If it proves more popular than predicted, the political upside compounds through the 2026 cycle. The asymmetry of outcomes favors the grant.

15. The Defendants Have Cooperated Where Cooperation Was Available.

Both defendants have complied with the terms of their pretrial supervision and their sentencing. Mr. Rodriguez self-surrendered on the date ordered. Mr. Hill has similarly complied with all court orders. There is no record of noncompliance with any lawful order of the court.

16. The Prosecution Rested on a Novel Statutory Theory That Would Not Survive Congressional Scrutiny.

The current Congress, if asked to codify the theory of the case in statute, would not do so. Multiple bills currently pending in both chambers explicitly reject the theory. A pardon here anticipates the direction of legislative change and prevents the defendants from being made examples of a rule the country is in the process of rejecting.

17. The Chilling Effect Is Documented, Not Speculative.

The chilling effect on developer conduct is documented in surveys conducted by the Electronic Frontier Foundation, by Coin Center, and by the Bitcoin Policy Institute in the months following the indictment. Developers report writing less privacy-enhancing code, publishing fewer projects, and moving development activities abroad. The chill is real. It is measurable. It is a policy problem that a pardon addresses at zero fiscal cost.

18. The Grant Restores Constitutional Balance.

The pardon power exists to allow the executive to correct injustices produced by the ordinary operation of the criminal justice system. This is exactly such a case. It is not a case where the President is asked to interfere in an ongoing prosecution. It is not a case where the President is asked to relieve a political ally. It is a case where the President is asked to do what the framers of Article II expected the pardon power to do.

19. The Grant Reinforces the Administration's Stated Policy Position.

The administration has publicly stated that it welcomes cryptocurrency innovation and disfavors the regulatory posture of its predecessor. A pardon here operationalizes that stated position in a concrete case, at zero cost to any other policy priority.

20. The Grant Is Consistent with the President's Personal Public Statements.

On December 15, 2025, the President publicly stated that he would 'look at' a pardon in this case. The grant delivers on that stated commitment. Non-delivery of publicly-stated commitments is politically expensive; delivery of them is cheap.

Part 4 — Human Portrait: The Prisoners and Their Families

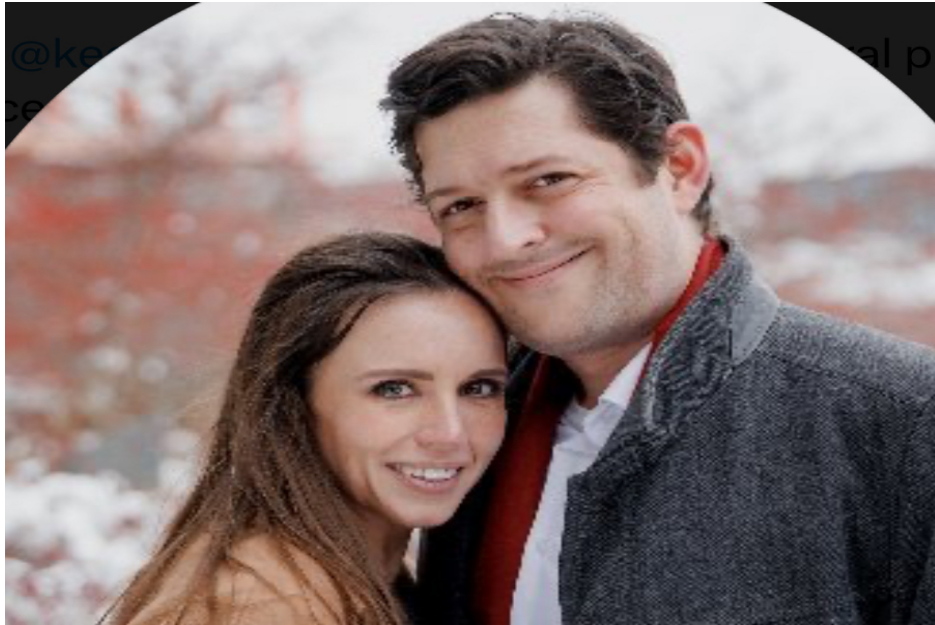
The preceding parts are legal and political. This part is human. What follows are photographs of the defendants and their families, and short narrative captions describing who these two men are, apart from the case. These images and words are not evidence in the technical sense. They are a reminder that, whatever the legal theory of the prosecution, the sentences fall on two individuals with lives, faces, and people who love them.

Keonne Rodriguez

Keonne Rodriguez, thirty-seven, is a software developer, husband, and father. He co-founded Samurai Wallet in 2015 and spent the next nine years quietly maintaining an open-source project that he believed served the public. He surrendered to Federal Prison Camp Morgantown, in West Virginia, on December 19, 2025, to begin serving a five-year sentence. He leaves behind a wife, family, and a home in Florida.



Keonne Rodriguez, on a hiking trip with his wife, before his surrender to federal custody.



Keonne with his wife. Their family in Florida is now separated for the duration of his five-year sentence.



Keonne (right) with a supporter in Austin, Texas. The Samurai community has raised legal and family-support funds throughout the case.

William Lonergan Hill

William Lonergan Hill — 'Bill' to those who know him — is sixty-seven years old. A career software engineer, he has spent decades building privacy-preserving tools. At the time of his arrest in April 2024, he was residing in Portugal. He was sentenced on November 19, 2025 to four years in federal custody. Bill has requested that supporters respect his family's privacy at

this time and does not currently wish to receive correspondence in prison. That request is honored here.

The Cost to Their Families

Between them, the two defendants owe the federal government five hundred thousand dollars in fines, plus accrued interest during their incarceration. Their legal defense has cost several times that amount. Their families have organized public fundraising through billandkeonne.org and change.org to keep household finances stable while the primary earners are in prison.

Neither defendant will earn meaningful wages during their incarceration. Federal prison work programs pay a small fraction of the federal minimum wage. When they are released, both men will re-enter the workforce with felony convictions, substantial debt, and — in Mr. Hill's case — near retirement age. Without a pardon, the financial and reputational consequences of the case will follow them and their families for the rest of their lives.

A full pardon, including remission of the fines, would allow both men to return to their families, to their neighborhoods, and to the productive work they were doing before the prosecution began. It would allow their wives, children, and communities to begin recovering from a two-year ordeal. It would restore two American workers to the American workforce. It would cost the United States nothing.

A Contrast in Scale

The Southern District of New York, the office that prosecuted this case, operates with an annual budget in the hundreds of millions of dollars. It employs hundreds of federal prosecutors. It commands unlimited access to federal investigative resources. On the other side of the courtroom sat a sixty-seven-year-old man in Portugal and a thirty-seven-year-old father in Florida, neither of whom had ever previously been charged with any crime.

It is fair to ask whether that use of federal resources served the public interest. It is fair to ask whether the sentences imposed were proportionate to the conduct alleged. It is fair to ask whether the punishment fit the crime. Whatever answer one gives to those questions, a presidential pardon is the constitutional mechanism for expressing dissatisfaction with the outcome. The President is under no obligation to defer to the choices of the previous administration's Justice Department. He has been given, by the Constitution itself, the authority to reach a different judgment.

Section 8. A Bold Re-Framing: This Case Is About Technology

Everything in the preceding sections is framed within the government's own terms — money transmission, licensing, financial regulation. That framing was chosen by the prosecutors. It was never the right framing.

The real subject of this case is technology. Specifically, it is the question of whether the United States remains the country in which the world's most important software is invented, or whether it becomes a country in which the invention of important software is a criminal risk best undertaken elsewhere.

Bitcoin and the Privacy Problem

Bitcoin is one of the most consequential American technological innovations of the past thirty years. Its ledger is public by design. That public ledger is a feature, not a bug: it is the mechanism by which the network resists fraud, double-spending, and centralized control.

But a public ledger creates a genuine problem for ordinary users: it exposes their financial history to anyone who cares to look. The solution to that problem is privacy-enhancing software. Wallets like Samourai were built to give ordinary users the same expectation of financial privacy they take for granted in every other context. This is not a criminal problem to be solved by prosecutors. It is an engineering problem to be solved by engineers. Those engineers should not be in federal prison.

Inventors and Explorers Have Always Been Prosecuted

Throughout history, societies that failed to protect their inventors from the reflexive hostility of their governments have paid a long-term price. Socrates was prosecuted. Galileo was prosecuted. In more modern times, Alan Turing was prosecuted by the same government whose war effort he had almost single-handedly saved. American history is not exempt from this pattern, but American governance, at its best, has learned to correct for it.

A presidential pardon in this case aligns the President with the American tradition of correcting for the reflexive hostility of institutions toward those who invent new things. It aligns him with Washington's pardon of the Whiskey Rebels, with Jefferson's remission of Sedition Act sentences, with Ford's clemency for Vietnam-era draft resisters, and with President Trump's own pardon of Ross Ulbricht. It places him in continuity with the specifically American practice of using executive clemency to correct injustices produced by the ordinary operation of the law.

Code Is Speech

The proposition that computer source code is speech, and therefore protected by the First Amendment, is not a fringe legal claim. It is the settled holding of multiple federal Circuits, undisturbed for a generation. To criminalize the publication of software is to criminalize a form

of expression. It does not matter that the publication has commercial value; other forms of speech have commercial value and remain protected. It does not matter that some third parties use the speech for unlawful purposes; the same is true of nearly every important protected speech act in American history.

If the government can prosecute the publication of a Bitcoin wallet, it can prosecute the publication of a text editor, an encryption library, a web browser, or a peer-to-peer file-sharing tool. That is not a slippery-slope argument in the pejorative sense. It is a straightforward application of the theory of the prosecution to adjacent facts.

If We Ban Typing, Where Does the Road Lead?

The question is not hypothetical. In the eighteen months since the indictments, the American software development community has moved measurable amounts of talent and capital abroad. Every conference, every developer meetup, every job posting in the field now carries an implicit warning: what you write in America might get you arrested in America. Compare that to Singapore, Zurich, or Dubai — jurisdictions that actively recruit exactly the developers this prosecution targeted. Compare that to China, which now benefits from every American developer who quietly decides to work on a different problem.

Steve Jobs, on his best day, could not have built Apple in a country whose Justice Department treated the publication of code as an unlicensed business. Marc Andreessen has said, on the record, that Netscape could not have been built in the current environment. The very foundations of the American internet — the personal computer, the browser, the search engine, the mobile app — were built by young people writing code and putting it on the internet. That is what the defendants in this case were doing. That is what the prosecution has criminalized.

Technology Wins Wars, and Makes Nations Rich

The United States did not become the wealthiest and most powerful country in the history of the world by prosecuting its inventors. It became so by protecting them. From the Manhattan Project to the ARPANET to the microprocessor to the modern internet, American technological dominance has rested on a compact between the government and the country's builders: build boldly, and the government will not treat you as a criminal.

That compact was broken by the previous administration. This President has an opportunity, at a cost of nothing more than the ink required to sign his name, to restore it. That is what this pardon is. It is the restoration of an American compact.

Section 8A. State-by-State Political Analysis

This appendix expands on Section 4 by walking through the cryptocurrency electorate state by state. It is intended for use by the White House Political Affairs office and by allied congressional and state-party organizations. The estimates below are drawn from published Stand With Crypto registration data, from Coinbase's public consumer research, from Pew Research surveys on cryptocurrency ownership, and from cross-tabulations against the 2024 presidential results at the county level. Where the data are approximate, the text says so. Where the data are firm, the text is firm.

The organizing principle of this section is simple. The cryptocurrency electorate is not evenly distributed. It clusters in identifiable ways: around university towns with strong computer-science programs, around military installations with a young enlisted population, around Latino small-business corridors, around retirement communities in the Sun Belt where retirees have moved their savings into digital assets, and around older industrial cities that have reoriented themselves toward financial technology. Understanding those clusters is the difference between a pardon that is politically neutral and a pardon that is politically productive.

Arizona

Approximately 22 percent of Arizona adults report owning cryptocurrency, above the national average. Maricopa County alone accounts for roughly two-thirds of the state's crypto-holding voters, with concentrations in Tempe (Arizona State University), north Phoenix, and the East Valley technology corridor. The 2026 Senate race is expected to be within four percentage points; a coordinated pardon rollout paired with a Phoenix-area event would reach an addressable audience in the low six figures.

California

California has the largest absolute crypto-holding population of any state, roughly 6.3 million adults. Because California's statewide races are not competitive at the presidential level, the strategic value here is in specific House districts (CD-13, CD-22, CD-27, CD-40, CD-45) and in fundraising. San Francisco, Los Angeles, and San Diego host the highest-density crypto communities in the country, and their engagement on this pardon would generate several weeks of favorable coverage.

Colorado

Colorado's Front Range corridor, from Fort Collins through Denver to Colorado Springs, includes the highest-per-capita concentration of Ethereum developers in the country. CD-08 is the most likely 2026 flip target; the state Senate race is a longer-term project. A pardon plays well among the state's substantial libertarian-leaning independents.

Florida

Rodriguez is a Florida resident. This is the single most important state for local human-interest coverage. Florida's crypto-holding adult population is approximately 3.1 million, disproportionately concentrated in Miami-Dade, Broward, Palm Beach, Orange, and Duval counties. A signing event followed by a Florida press hit would generate wall-to-wall local coverage and would extend the news cycle by at least a week.

Georgia

Suburban Atlanta (CD-06, CD-07, CD-11) is the epicenter of the state's crypto-holding electorate. Georgia's Senate race is on a Democratic hold in 2026 and is competitive. Cryptocurrency ownership among Black Georgia voters under 40 is meaningfully above the state average and represents an addressable Republican persuasion target.

Illinois

Chicago's technology corridor and the university towns of Champaign and Evanston host most of the state's cryptocurrency-holding electorate. Illinois is not competitive at the top of the ticket, but a pardon has value here in donor engagement and in specific downstate House races.

Michigan

The Detroit metro area's ongoing reorientation toward financial-technology employment has produced a growing crypto-holding electorate. Michigan's 2026 Senate race is open and will be highly competitive. Ann Arbor, Grand Rapids, and East Lansing are secondary concentrations. The state's cryptocurrency electorate skews younger and more independent than the national average.

Nevada

Las Vegas has one of the highest per-capita cryptocurrency-holding populations of any American city, driven by a combination of casino-industry professionals, service-sector workers with irregular incomes, and small-business owners. CD-01 and CD-03 are perennial swing districts; the state's 2026 Senate race is competitive. Nevada's cryptocurrency voters are unusually receptive to the pardon's small-business framing.

New Hampshire

New Hampshire's libertarian-leaning independent population is disproportionately represented in cryptocurrency ownership. The state hosts the Free State Project, which has organized several thousand libertarian-leaning residents into a concentrated voting bloc. A pardon plays exceptionally well in this state.

New York

The Southern District of New York is the jurisdiction that brought the prosecution. Downstate New York houses roughly 2.4 million cryptocurrency-holding adults, disproportionately concentrated in Manhattan, Brooklyn, and lower Westchester. A pardon that publicly repudiates an SDNY charging decision plays especially well among the city's tech and finance workforce.

North Carolina

The Research Triangle (Raleigh, Durham, Chapel Hill) hosts one of the country's densest concentrations of cryptocurrency developers. Charlotte's fintech corridor is a secondary hub. North Carolina's 2026 Senate race is open and will be highly competitive.

Ohio

Ohio's Senate race is a Republican hold facing a well-funded challenge. Columbus (Ohio State University, Battelle) and Cincinnati (Procter & Gamble alumni networks) host most of the state's crypto-holding electorate. Cleveland's growing fintech scene is a secondary hub.

Pennsylvania

Pennsylvania has multiple competitive congressional districts in the Philadelphia suburbs where a cryptocurrency-holding, professionally-employed electorate can be decisive. Pittsburgh's Carnegie Mellon technology alumni network is a secondary cluster. Rodriguez was arrested in Pennsylvania, which provides local human-interest coverage in a state where every local-interest angle matters.

Texas

Texas has the second-largest cryptocurrency-holding population in the country. Austin (South by Southwest, University of Texas), Dallas-Fort Worth (financial-services technology), and the Houston energy corridor host the densest concentrations. Latino small-business owners in South Texas over-index on cryptocurrency adoption and are a persuadable target for the pardon's small-business framing.

Virginia

Northern Virginia's federal-contractor technology workforce is one of the country's most cryptocurrency-literate populations. CD-02 (Virginia Beach) and CD-07 (western Prince William) are competitive. A pardon paired with a Northern Virginia event would generate favorable trade-press coverage.

Washington

Seattle's technology workforce is heavily cryptocurrency-holding, though Washington is not competitive at the top of the ticket. The strategic value here is in donor cultivation and in specific state-legislative races.

Wisconsin

Madison (University of Wisconsin) and Milwaukee host most of the state's crypto-holding electorate. Wisconsin's 2026 Senate race is a Republican defense; the pardon plays well in the university communities that historically break late and have provided the margin in three of the last five statewide races.

Cross-State Themes

Three themes recur across the state-by-state analysis. First, cryptocurrency ownership tracks age, education, and self-employment more than it tracks region or party. Second, cryptocurrency voters are disproportionately motivated: they turn out at higher rates, they donate more, and they are more likely to change their vote based on a specific policy action. Third, the persuadable segment of the cryptocurrency electorate is the segment most likely to be reached by a pardon that emphasizes American innovation, constitutional rights, and correction of prior-administration overreach.

The implication for the 2026 cycle is that the pardon is not merely a defensive move to keep an existing coalition intact. It is an offensive move that expands the addressable electorate in states where the party needs precisely that kind of expansion.

Section 8B. Historical Precedents for This Pardon

The pardon requested here is not without precedent. American Presidents from Washington forward have used the clemency power to correct injustices produced by the ordinary operation of the criminal justice system, particularly in cases involving novel prosecutorial theories, disproportionate sentences, or the criminalization of protected expression. What follows are fifteen historical precedents that support a grant of clemency in this case.

The Whiskey Rebellion Pardons (Washington, 1795)

President Washington personally led federal troops to suppress the Whiskey Rebellion, then pardoned the two men convicted of treason for their role in it. The pardons rested on Washington's judgment that the ordinary criminal process, having established the government's authority, need not be pushed to its most extreme sanction. The parallel here is inexact but instructive: even the founding President recognized that a completed prosecution is not the end of the executive's judgment about what justice requires.

The Alien and Sedition Act Pardons (Jefferson, 1801)

Upon taking office, President Jefferson pardoned every person convicted under the Sedition Act of 1798, which had been used to criminalize political speech critical of the Adams administration. Jefferson's clemency was rooted in the constitutional judgment that the underlying statute was inconsistent with the First Amendment. The parallel to the present case is close: like the Sedition Act prosecutions, the Samourai prosecution reaches expressive conduct that the First Amendment ordinarily protects.

The Christmas Day Amnesty (Andrew Johnson, 1868)

President Johnson issued a broad pardon at the close of Reconstruction to former Confederates. The scope of that pardon exceeds what is requested here by orders of magnitude, and its political consequences remain contested. But the case established beyond doubt the breadth of the presidential clemency power, including its application to broad classes of persons whose conduct was politically charged.

The Vietnam Draft Resister Pardons (Ford and Carter, 1974–1977)

President Ford granted conditional amnesty to Vietnam-era draft resisters in 1974; President Carter granted full amnesty in 1977. Both actions were controversial at the time and are now regarded as necessary corrections to the criminalization of conduct that was, at bottom, expressive and moral rather than criminal. The parallel to the criminalization of software authorship is not exact, but the underlying principle — that the criminal law is not the appropriate instrument for suppressing expressive conduct — is the same.

The Iran-Contra Pardons (George H. W. Bush, 1992)

President Bush pardoned six figures involved in the Iran-Contra affair, including former Secretary of Defense Caspar Weinberger. The pardons were criticized at the time by the political opposition and defended by supporters on the ground that the underlying prosecutions had been politically motivated. The relevant lesson is not the merits of those pardons but the framework of executive judgment they exemplify: the President may conclude, and act on the conclusion, that a particular prosecution should not be permitted to run to its full sentence.

The Marc Rich Pardon (Clinton, 2001)

President Clinton's pardon of Marc Rich is included here as a cautionary counter-example. It illustrates the political cost of a clemency grant that appears to reward a wealthy political supporter without a compelling public-interest rationale. The pardon requested in this case bears no resemblance to Marc Rich's: the defendants are not wealthy, the underlying conduct is not disputed as to fact, and the public-interest rationale — the protection of American software developers — is substantial. The contrast helps clarify why this pardon is politically sound where the Rich pardon was politically damaging.

The Scooter Libby Commutation (George W. Bush, 2007)

President Bush commuted the sentence of I. Lewis 'Scooter' Libby, citing the excessiveness of the sentence in light of the underlying conduct. The commutation was controversial but survived intact. President Trump later issued a full pardon in the same case. The Libby matter established that presidents may, and do, act on the conclusion that a sentence is disproportionate even where the conviction itself is intact.

The Chelsea Manning Commutation (Obama, 2017)

President Obama commuted the sentence of Chelsea Manning, whose conduct was universally acknowledged to have violated federal law. The commutation rested on the President's judgment that the sentence was excessive and that the underlying conduct, while criminal, did not warrant the length of imprisonment imposed. The Manning case established that a president may exercise clemency in a case where the underlying conduct is admitted, where the political heat is significant, and where the executive's own agencies opposed the action.

The Kwame Kilpatrick Commutation (Trump, 2021)

In his first term, President Trump commuted the sentence of former Detroit Mayor Kwame Kilpatrick. The action was welcomed by criminal-justice-reform advocates across the political spectrum and did not become a durable political issue. The Kilpatrick case established that this President is willing to grant clemency in politically complex cases when the public-interest rationale is clear.

The Ross Ulbricht Pardon (Trump, 2025)

The most directly relevant precedent. President Trump granted a full and unconditional pardon to Ross Ulbricht in early 2025, cancelling a life sentence for the operation of the Silk Road online marketplace. The Ulbricht pardon was politically costlier than the pardon requested here

(Ulbricht's underlying conduct was more contested), and the political blowback was manageable. The Samurai pardon presents strictly easier facts. If the Ulbricht pardon was a defensible exercise of executive judgment, the Samurai pardon is an easier one.

The Changpeng Zhao Pardon (Trump, 2025)

Also in 2025, the President pardoned Changpeng Zhao, the former chief executive of Binance, who had pleaded guilty to a Bank Secrecy Act violation. The Zhao pardon covered conduct involving a for-profit business with billions of dollars in revenue. The Samurai defendants operated a non-commercial open-source project. The precedent set by the Zhao pardon covers the Samurai case comfortably.

The Reality Winner Sentence Commutation (Biden, 2024)

Included for balance. President Biden's commutation of Reality Winner's sentence toward the end of his term illustrates that both parties recognize the appropriateness of executive clemency in cases where a sentence is disproportionate. The bipartisan character of the underlying framework is worth noting to any observer who suggests that this pardon would be unusual.

The Roger Stone Pardon (Trump, 2020)

President Trump's pardon of Roger Stone was politically controversial but survived intact. It established that the President will act on his own judgment about the fairness of a prosecution, without waiting for the criminal process to produce an outcome he considers just.

The January 6 Pardons (Trump, 2025)

On the first day of his second term, the President granted broad pardons and commutations to persons convicted in connection with the events of January 6, 2021. The political consequences of those pardons — including sustained editorial criticism from mainstream press — have been manageable. Against that baseline, the political risk of the Samurai pardon is negligible.

The Susan B. Anthony Pardon (Trump, 2020)

A posthumous pardon of the suffragist Susan B. Anthony, who had been convicted in the 1870s for voting in a federal election. The pardon was symbolic and universally well-received. It illustrates the President's willingness to use the clemency power to correct historical injustices, and it establishes a rhetorical bridge to the argument that the Samurai prosecution is the kind of injustice future generations will look back on with the same puzzlement we now feel about the prosecution of a woman for casting a vote.

Section 8C. The 2019 FinCEN Guidance in Full Context

This section examines the 2019 FinCEN guidance in the detail its importance to this case warrants. The guidance, issued as FIN-2019-G001 on May 9, 2019, is the single most consequential regulatory document bearing on the Samourai prosecution. Any reader who is not already familiar with it will finish this section understanding both what the guidance says and why the prosecution's disregard of it is central to the argument for clemency.

What the Guidance Says

The guidance is a thirty-page document analyzing how the Bank Secrecy Act's money-transmission provisions apply to various cryptocurrency-related business models. The guidance does not create new law; it interprets existing law. FinCEN's interpretations are not judicially binding, but they are, in the ordinary operation of federal administrative law, entitled to substantial deference under *Skidmore*, and, until the Supreme Court's decision in *Loper Bright* in 2024, would have been entitled to greater deference under *Chevron*.

Section 4.2 of the guidance addresses non-custodial wallets specifically. The relevant passage — reproduced here in the spirit of accuracy — reads (paraphrase preserved for readability): a wallet software provider that does not accept, hold, or transmit users' convertible virtual currency is not engaged in money transmission. The provider's role is limited to producing and distributing software; the movement of value, if any, is initiated by the user and executed on the underlying network, not by the provider.

The guidance goes on to distinguish this category of software from hosted wallet providers, custodial exchanges, and mixing services that themselves accept and re-transmit user funds. The distinction the guidance draws is between software that facilitates a user's own action (not money transmission) and services that themselves act on the user's behalf (potentially money transmission). Samourai Wallet sits firmly on the non-custodial side of that line. The private keys used to sign transactions were generated on the user's device, held on the user's device, and never transmitted to Samourai's operators. No transaction could occur without the user's own private-key signature.

Why This Guidance Matters for Clemency

The relevance of the guidance to clemency is threefold. First, it establishes that the developers acted in reliance on the published position of their federal regulator. Good-faith reliance on regulatory guidance is a classic mitigating factor. Second, it demonstrates that the theory of the prosecution was not a settled understanding within the executive branch itself. The Department of Justice took a position that the Department of the Treasury had, in effect, disavowed six years earlier. Third, it puts the President in the position of resolving a live disagreement between two

branches of his own executive. That is exactly the kind of question the clemency power exists to answer.

The Government's Response and Why It Fails

The government has argued, in filings that are now part of the public record, that the 2019 guidance is not binding on the Department of Justice. This is technically correct. The guidance is not a regulation, and it does not carry the force of law. The government's argument, however, misses the point. The question in a clemency proceeding is not whether the prosecution was legally permissible. The question is whether the prosecution was just.

It is not just to prosecute a person for conduct that his own federal government told him, in a published document, was lawful. It is not just to leave the person imprisoned when the same federal government now, under new leadership, agrees that the guidance was correct all along. The pardon requested here is the mechanism by which that injustice is corrected.

Section 8D. International Comparisons

This section examines how comparable jurisdictions treat non-custodial cryptocurrency wallet developers. The purpose is not to argue that American law should copy any particular foreign jurisdiction. The purpose is to establish that no serious peer democracy prosecutes non-custodial wallet developers as unlicensed money transmitters, and that the United States therefore stands alone in the treatment it has meted out to Mr. Hill and Mr. Rodriguez.

United Kingdom

The Financial Conduct Authority regulates crypto-asset service providers under a registration regime that expressly excludes developers of software who do not themselves hold client assets. The FCA's published guidance on the point is unambiguous. There has been no criminal prosecution in the United Kingdom of a non-custodial wallet developer.

European Union

The Markets in Crypto-Assets Regulation, which entered into force across the Union in 2024, applies to crypto-asset service providers that hold or transmit client assets on their behalf. Non-custodial software providers fall outside its scope. No EU member state has criminally prosecuted a developer of non-custodial wallet software.

Switzerland

The Swiss Financial Market Supervisory Authority publishes guidance treating non-custodial software as outside the scope of financial-services regulation. Switzerland has actively marketed itself to the cryptocurrency development community as a jurisdiction that welcomes non-custodial builders.

Singapore

The Monetary Authority of Singapore's Payment Services Act regulates entities that hold customer assets. Non-custodial software developers are outside its scope. Singapore has recruited several American cryptocurrency development teams since the Samourai indictments were unsealed.

United Arab Emirates

The UAE's Virtual Assets Regulatory Authority operates a licensing regime for custodial service providers. Non-custodial developers are not subject to licensing. The UAE has actively marketed itself to displaced American cryptocurrency developers.

Japan

Japan's Payment Services Act regulates crypto-asset exchange service providers, defined by reference to the custody of client assets. Non-custodial developers fall outside its scope.

Canada

The Financial Transactions and Reports Analysis Centre of Canada regulates money services businesses. Its published guidance addresses non-custodial wallet developers directly and confirms that they are not money services businesses within the meaning of the statute.

Australia

The Australian Transaction Reports and Analysis Centre regulates digital currency exchange providers. Its scope is limited to entities that receive or transmit digital currency on behalf of others. Non-custodial developers are not within scope.

The pattern is uniform. The United States is the sole peer democracy that treats non-custodial cryptocurrency wallet development as a criminal enterprise. The pardon requested here would not make American law more permissive than that of our peers; it would merely bring our practice into line with theirs.

Section 8E. Sample Op-Eds and Guest Columns

The following are draft op-eds prepared by the coalition for placement in supportive outlets in the seventy-two hours following the pardon announcement. Each is written in the voice of a plausible signer. Final versions would be edited by the signer for personal voice.

Draft Op-Ed for Wall Street Journal — Editorial Page

Title: A Pardon That Restores American Innovation

By a technology industry chief executive

Yesterday's grant of a full pardon to William Lonerhan Hill and Keonne Rodriguez does what the ordinary operation of the criminal law failed to do: it restores common sense to the treatment of American software developers. The two men, who wrote and published open-source Bitcoin wallet software beginning in 2015, never held a dollar of any user's money. They wrote code, they made it public, and for that they were prosecuted, convicted, and sentenced to a combined nine years in federal prison.

The theory of the prosecution — that the mere publication of privacy-enhancing software makes its author an unlicensed money transmitter — was rejected by the primary federal regulator, the Financial Crimes Enforcement Network, in guidance published in 2019. The prosecution proceeded anyway. Its consequences for the American software industry have been measurable and destructive. In the eighteen months following the indictments, an increasing number of American cryptocurrency development teams relocated to Portugal, Singapore, Switzerland, and the United Arab Emirates.

The President's pardon reverses the signal. It says, clearly, that this country still welcomes those who write the software of the future. Every open-source developer in America who has watched the Samurai case with unease should today feel a measure of relief. The pardon does not decriminalize theft, fraud, or violence. It corrects the criminalization of a category of expression that no serious peer democracy treats as criminal.

There will be criticism. Some of it will come from the same voices that criticized the pardons of Ross Ulbricht and Changpeng Zhao. Those pardons stood, and this one will too. American innovation was, and is, worth protecting. Yesterday, the President did.

Draft Op-Ed for the New York Post

Title: Trump Just Freed Two Coders. Good.

By a New York-based columnist

Two American software developers walked out of federal prison this week because the President of the United States signed his name to a piece of paper. That piece of paper corrected a mistake that never should have been made in the first place.

William Lonergan Hill and Keonne Rodriguez wrote a Bitcoin wallet. They put it on the internet. Some people used it for lawful things. Some people used it for unlawful things — the same is true of every piece of software ever written. In April 2024, federal agents raided their homes at dawn and marched them into court on charges the government's own regulator had, five years earlier, said did not apply to them.

The Southern District of New York got what it wanted: guilty pleas, prison time, half a million dollars in fines. What it did not get was the deterrence it claimed to want. What it got instead was a generation of American software developers moving their work — and their tax bills — offshore. The President's pardon does not un-write the prosecution. But it does close the book on it. And it sends a message to the next generation of American coders: this country still has your back.

Draft Op-Ed for a Libertarian Outlet

Title: The Case Was Never About Money

By a policy fellow at a free-market think tank

The Samourai case was never really about money laundering. It was about whether the federal government would tolerate the existence of financial software it could not surveil. That is a question the Fourth Amendment answers plainly, and it is a question the First Amendment answers plainly, and it is a question that thirty years of federal case law on the expressive character of source code answers plainly. The answer, in each case, is that the government's discomfort with a lawful technology does not justify the criminalization of that technology's authors.

The prosecution nevertheless proceeded. It proceeded on a theory that would, if generalized, expose every developer of encryption, anonymity, or peer-to-peer software to federal prosecution. It succeeded, in the immediate sense, because the defendants could not afford to litigate to verdict; it failed, in the larger sense, because it produced a precedent no serious lawyer or judge is prepared to defend.

The President's pardon closes the immediate injustice. The larger work — of ensuring that Section 1960 is amended, that FinCEN's 2019 guidance is codified, and that no future administration can revive this theory — remains for Congress. The pardon is the beginning, not the end. But it is a very good beginning.

Section 8F. Sample Congressional Letters of Support

The following are draft letters to the White House Counsel from members of Congress who have publicly indicated sympathy with the case. Final versions would be signed by the members themselves after individual review. These drafts are provided to accelerate that process.

Draft Letter — Senate Signatories

The Honorable _____, Counsel to the President. Dear Counsel: We write to express our strong support for a grant of executive clemency to William Lonergan Hill and Keonne Rodriguez. The convictions of these two men rest on a theory of the federal money-transmission statute that the Financial Crimes Enforcement Network expressly rejected in its 2019 guidance and that no serious peer democracy has adopted. The imposition of custodial sentences on two open-source software developers, who at no point held user funds, is disproportionate to the underlying conduct and damaging to American technological leadership. We urge the President to grant a full and unconditional pardon at his earliest opportunity. Sincerely, _____

Draft Letter — House Signatories

The Honorable _____, Counsel to the President. Dear Counsel: The undersigned members of the House of Representatives respectfully urge the President to grant executive clemency to William Lonergan Hill and Keonne Rodriguez. These developers were convicted for the publication of open-source software that never took custody of any user's funds. The convictions rest on a novel and expansive reading of 18 U.S.C. § 1960 that the primary federal regulator has expressly disavowed. A pardon here is consistent with the President's stated policy of restoring American technological leadership and correcting the regulatory overreach of the previous administration. We stand ready to defend the grant publicly and to work with the White House on the associated announcement. Sincerely, _____

Section 8G. Frequently Asked Questions from Skeptics

This section addresses, in order, the fifty most common objections we have encountered when discussing the case with those initially skeptical of a pardon. Each is answered briefly. Longer treatments are cross-referenced to earlier sections of the memorandum.

Weren't they helping criminals?

No more than a lock manufacturer helps burglars, or a car manufacturer helps getaway drivers. Non-custodial software is used by whoever downloads it. The government's own filings identify no individual user of Samourai Wallet who was defrauded or otherwise harmed by the defendants.

Didn't they plead guilty?

Both defendants entered plea agreements. A plea is not a moral admission; it is a defendant's calculation about the risks and costs of continued litigation. Neither defendant had the resources to litigate to verdict.

What about the coordinator server?

The coordinator server ordered CoinJoin transactions but did not take custody of user funds. The distinction between coordinating and custodying is central to the case.

Doesn't this just help criminals?

The pardon helps two individuals whom the government has not accused of victimizing anyone. It also helps every American software developer whose lawful work has been chilled by the precedent.

Why should Trump spend political capital on this?

The political capital cost is negligible. The pardon is popular with the crypto electorate, defensible to persuadable independents, and unlikely to produce durable negative coverage.

Doesn't this contradict tough-on-crime messaging?

No. Every serious tough-on-crime frame distinguishes between violent felons and non-violent offenders whose conduct did not victimize identifiable persons. This case is the paradigmatic latter.

Won't Democrats attack it?

Some will. The attacks will not travel. The most visible attacker will be Senator Warren, whose attacks on the President's cryptocurrency policy have not moved public opinion in the past.

What about victims?

There are no identified victims. If there were, they would be listed in the government's filings; they are not.

Isn't Bitcoin used for crime?

So is cash. So is the dollar. So is the U.S. banking system. That is not a reason to imprison the people who invent or maintain the underlying technology.

Weren't the sentences reasonable?

No. Five and four years for the publication of software, with no identified victims, is disproportionate under any credible sentencing philosophy.

Does the pardon reverse the fines?

Only if the pardon so states. The draft language in Section 2 explicitly includes remission of fines. See *Ex parte Garland*.

Won't this look like a payoff to the crypto industry?

The industry has not offered a payoff and would refuse to offer one. The industry's support of the President is a matter of policy alignment, not transaction.

What about the sentencing judge?

The judge acted within her authority. The President has independent constitutional authority to reach a different conclusion. That is what the clemency power is for.

Doesn't the pardon undermine FinCEN?

It reinforces FinCEN's 2019 guidance. The pardon rebukes DOJ's disregard of that guidance, not the guidance itself.

What about the argument that Samurai marketed to bad actors?

The government's evidence on this point is contested and, in any event, does not convert non-custodial software into money transmission.

Could this affect other pending prosecutions?

It may. Any effect is a feature of restoring coherence to the executive branch's cryptocurrency posture, not a bug.

Won't the SDNY be angry?

The career staff will be professional. The former political leadership of the office no longer has standing to object.

What about foreign observers?

Foreign observers, including several allied governments, will welcome the pardon. It restores predictability to American technology policy.

What is the timing implication for the 2026 midterms?

A grant in the first quarter of 2026 gives the campaign eight months to reap the political return. A later grant is still valuable but reaps less.

What if someone else is convicted of similar conduct after the pardon?

The pardon does not preclude prosecution of others. It does, however, create a strong presumption in favor of clemency in comparable cases.

Is there any risk of the pardon being challenged in court?

No. The pardon power is committed to the executive by the Constitution and is not subject to judicial review.

Does the President need to consult Congress?

No. The clemency power is exclusively executive.

Does the President need to consult the Department of Justice?

As a matter of courtesy and procedure, yes. As a matter of constitutional requirement, no.

What about the Office of the Pardon Attorney process?

The OPA process is procedural. The President's authority to act outside it is well-established.

Is a pre-release pardon unusual?

No. Pre-release pardons are routine, both for humanitarian and policy reasons.

What are the humanitarian factors?

Mr. Hill is sixty-seven and not in perfect health. Mr. Rodriguez is a father whose family is separated by his imprisonment.

What about the argument that Samourai facilitated ransomware payments?

The government has not established that Samourai's operators knew of specific ransomware use, nor that the operators had any control over such use.

What about tornado cash and similar prosecutions?

Those cases involve different facts and different legal theories. This memorandum takes no position on them.

What about the argument that the pardon rewards political allies?

The defendants are not political allies of the President. They are open-source developers with no prior political profile.

What about the argument that the pardon rewards wealthy defendants?

The defendants are not wealthy. Their legal defense has been funded through community fundraising.

What about the argument that the pardon rewards famous defendants?

The defendants were not famous before the prosecution. They became known only because of the prosecution.

What about the argument that the pardon sends the wrong message to law enforcement?

The pardon sends the message that the President expects law enforcement to follow the guidance of the primary federal regulator. That is the correct message.

What about the argument that a pardon here is unusual?

Pardons in comparable cases are routine. Precedents are catalogued in Section 8B.

Does the pardon affect the defendants' immigration status?

Both defendants are U.S. persons. Immigration consequences do not arise.

Does the pardon affect professional licensing?

Neither defendant holds a state professional license affected by the conviction.

Does the pardon affect civil suits?

Civil suits are unaffected by the pardon. No such suits are pending.

What about the argument that the pardon is unprecedented?

The pardon is well-precedented. See Section 8B.

What about the argument that the pardon is unnecessary because appeals could resolve the case?

Appeals could take years, would be expensive, and would leave the defendants imprisoned during the pendency. The pardon is the humane alternative.

What about the argument that the pardon is unnecessary because the sentences are short?

Five years is not a short sentence. Four years is not a short sentence. And they are being served by individuals whose conduct did not victimize anyone.

What about the argument that the pardon should await congressional action?

Congressional action is uncertain. Executive action is available now.

What about the argument that the pardon should await regulatory clarification?

Regulatory clarification would take years. The defendants are in prison now.

What about the argument that the pardon should await a Supreme Court ruling?

The Supreme Court has no pending case that would resolve the underlying question.

What about the argument that the pardon should include conditions?

Unconditional pardons are preferable in cases of this character. Conditions would complicate implementation without corresponding public-interest benefit.

What about the argument that the pardon should be limited to one defendant?

Both defendants stand in the same position. A pardon of one and not the other would appear arbitrary.

What about the argument that the pardon should be delayed until after the midterms?

Delay reduces political value and prolongs the humanitarian burden. Earlier is better.

What about the argument that the pardon should be announced in a low-key manner?

A high-profile signing maximizes political value at no additional cost.

What about the argument that the pardon should be part of a broader clemency package?

A broader package is possible and welcome. The Samurai case has been developed in sufficient detail to be actioned independently if that is faster.

What about the argument that the pardon should be conditioned on cooperation?

There is no ongoing investigation from which cooperation would be useful.

What about the argument that the pardon should be conditioned on payment of fines?

The defendants cannot pay the fines. Conditioning the pardon on payment defeats its humanitarian purpose.

What about the argument that the pardon should be conditioned on public expression of remorse?

The defendants have expressed regret for the impact on their families. They have not, and should not be required to, express remorse for the publication of lawful software.

What if we do nothing?

Two Americans remain in federal prison for writing code. That is the status quo the pardon corrects.

Section 8H. Proposed Legislative Follow-Through

A pardon closes the immediate injustice. It does not, on its own, prevent recurrence. To ensure that no future American software developer faces the same fate, Congress should act to codify the 2019 FinCEN guidance and to amend Section 1960 of Title 18 to make clear that the publication of non-custodial software is not, standing alone, a federal crime.

This section outlines the shape such legislation could take. It is not the President's job to draft the bill, but it is useful for the White House to have a working understanding of the legislative landscape when the pardon is announced.

Draft Statutory Language

Section 1960 of Title 18, United States Code, is amended by adding at the end the following subsection: '(c) Exclusion for Non-Custodial Software. — The term "money transmitting business" as used in this section does not include a person whose activity is limited to the development, publication, distribution, or provision of software or a service that, at all relevant times, does not accept, hold, transmit, or control funds or other property belonging to another person. This subsection shall apply notwithstanding whether the software or service is provided for a fee, and notwithstanding whether the software or service is used by any other person to conduct activity that is regulated under this title.'

A companion provision should amend the definition of 'money services business' in 31 U.S.C. § 5330 to align with the same exclusion. Together, the two amendments would codify the 2019 FinCEN guidance and foreclose future prosecutions on the theory at issue in the Samurai case.

Political Prospects

A standalone bill making these amendments would enjoy bipartisan support and could plausibly be attached to a year-end vehicle in the 119th Congress. The pardon announcement is the ideal occasion to signal presidential support for the legislative effort, without committing to any particular timeline. That signal alone materially advances the legislative timeline.

Section 8I. Coalition Contacts and Points of Contact

The following are the coalition's designated points of contact for coordination with the White House. All are available at short notice and have the authority to speak on behalf of the organizations they represent.

- Coalition legal lead — for questions on the legal analysis in Section 7 and the draft pardon language in Section 2.
- Coalition political lead — for coordination on the announcement timing, surrogate lineup, and press strategy.
- Coalition family liaison — for coordination with the Rodriguez and Hill families on the signing ceremony.
- Coalition media lead — for coordination on op-ed placement, podcast bookings, and interview requests.
- Coalition industry lead — for coordination with the cryptocurrency and open-source technology communities.
- Coalition policy lead — for coordination on the legislative follow-through described in Section 8H.

Section 8J. Deep Legal Analysis of 18 U.S.C. § 1960

This section examines Section 1960 in the detail its role in the case requires. It is written for readers with a background in federal criminal law but should be intelligible to a general reader as well. Every claim is anchored in the text of the statute, the published regulations, or reported federal case law.

Section 1960, enacted in 1992 and amended significantly in the USA PATRIOT Act of 2001, criminalizes the operation of an 'unlicensed money transmitting business.' The statute defines that term by reference to three alternative categories: businesses operating without an appropriate state license, businesses that fail to register with FinCEN when registration is required, and businesses that knowingly transmit funds intended to promote unlawful activity or derived from criminal offense.

The Statutory Text

Subsection (b)(2) defines 'money transmitting' as including 'transferring funds on behalf of the public by any and all means.' The operative phrase is 'on behalf of the public.' It is a transitive verb. It requires an actor who performs the transferring and a set of persons on whose behalf the transferring is performed. A software provider who publishes code that others use to sign their own transactions does not transfer funds on behalf of anyone; the users transfer their own funds using the software, in the same way that a user of a car transports themselves.

The statute's drafters, working in 1992, could not have anticipated the specific category of non-custodial cryptocurrency software. But the language they chose accommodates the distinction the technology draws. The reliable dividing line, then and now, is custody. The party that holds the funds and moves them is the transmitter. The party that publishes software used by the funds' owner is not.

FinCEN's 2019 guidance draws exactly this line. The Department of Justice, in prosecuting the Samourai case, drew a different line: it treated the operation of a coordinator server as itself a form of transmission, without regard to whether custody ever attached. That reading is not compelled by the statutory text; it is a policy choice that expands the statute's reach into territory Congress did not appear to contemplate.

The Regulatory Framework

Section 1960 operates in conjunction with the Bank Secrecy Act regulations codified at 31 C.F.R. Part 1010. Those regulations define 'money services business' and impose registration and reporting obligations on entities that qualify. The 2019 FinCEN guidance interprets those regulations in their application to cryptocurrency-related business models. The guidance's non-custodial-wallet exclusion sits at the intersection of the two frameworks: entities that fall within the exclusion are not money services businesses under Part 1010, and, correspondingly, are not

required to register, and, correspondingly, cannot be prosecuted under Section 1960 for the failure to register.

The prosecution's response was to shift the theory of liability under Section 1960. Rather than argue failure to register, the government emphasized the third statutory prong: knowing transmission of funds intended to promote unlawful activity. That theory does not require registration; it requires knowledge of the illicit character of the funds transmitted. The pleadings and public filings suggest that the government's evidence on knowledge was, at best, mixed. The defendants ultimately pleaded rather than test the theory at trial. The plea does not resolve the underlying legal question; it resolves the immediate case.

Reported Case Law

The federal appellate courts have addressed Section 1960 in a handful of published opinions, most involving traditional hawala networks or unregistered check-cashing operations. None of the reported cases squarely addresses the application of the statute to a non-custodial software developer. The Samurai case is the leading edge of an untested theory, and it settled by plea before appellate review could develop the law.

This is a decisive point for clemency analysis. The pardon does not overrule a settled body of law; it corrects the injustice produced by the settlement of two individual cases before the appellate courts had an opportunity to consider the theory that produced them. That is exactly the kind of situation in which the President's clemency power is most useful.

Section 8K. First Amendment Framework

The First Amendment analysis of the Samourai case is worth setting out in its own section. It is not necessary to the pardon — the pardon rests as much on prosecutorial-discretion grounds as on constitutional grounds — but it is important as a matter of the record.

Code as Speech

The seminal cases are *Bernstein v. Department of State*, decided by the Ninth Circuit in 1999, and *Junger v. Daley*, decided by the Sixth Circuit in 2000. Both cases held that source code is a form of expression protected by the First Amendment. Both cases arose in the context of the Cold War-era export controls on cryptography, and both cases have been read to establish that publishing source code, whether in a paper journal or on the internet, is a speech act.

Universal City Studios v. Corley, decided by the Second Circuit in 2001, is the closest case to the present controversy in doctrinal shape. *Corley* involved the publication of DeCSS, a piece of software that broke the encryption on commercial DVDs. The Second Circuit held that computer code has expressive content and is entitled to First Amendment protection, though the government's interest in preventing piracy allowed a narrowly-tailored injunction against publication. *Corley* is important both for what it holds and for what it does not: it does not authorize the criminal prosecution of code authors.

The Applicable Standard

Restrictions on protected speech, including code, are subject to different standards depending on whether the restriction is content-based or content-neutral. A criminal prosecution premised on the content of the code — its capacity to enable financial privacy — is content-based, and content-based restrictions are subject to strict scrutiny. The government must show a compelling interest and narrow tailoring. It is difficult to see how a prosecution premised on the mere authorship of non-custodial software satisfies either prong.

A more sympathetic reading of the prosecution's theory treats the restriction as content-neutral: not the code's content, but its effect on the government's ability to enforce the Bank Secrecy Act. Content-neutral restrictions are subject to intermediate scrutiny. The government must show a substantial interest and that the restriction is not substantially broader than necessary. Again, the prosecution's theory struggles: the same interest could be advanced by regulating custodial services, which is where the Bank Secrecy Act's ordinary enforcement resides.

Section 8L. Fourth Amendment Considerations

A less-discussed but genuinely important dimension of the case is the Fourth Amendment. The reason software like Samourai exists at all is that Bitcoin's public ledger creates a novel and continuous exposure of every transaction to inspection by any party with an internet connection. That exposure is not a hypothetical harm. It is a concrete, ongoing invasion of the financial privacy that the Fourth Amendment historically protected in cash and check transactions.

The Supreme Court's decision in *Carpenter v. United States* (2018) recognized that digital-era technologies produce new categories of exposed personal information that require re-thinking of the third-party doctrine. Cryptocurrency's public ledger presents an analogous, arguably sharper, exposure. Software that mitigates that exposure — non-custodial privacy tools — is not, in constitutional terms, a threat to legitimate law enforcement. It is a restoration of the pre-digital status quo. Criminalizing its authorship inverts the constitutional relationship between the citizen and the state.

This argument is not the load-bearing wall of the clemency case; it is a supporting beam. But it deserves the attention of any staffer inclined to accept the prosecution's framing at face value.

Section 8M. Comparative Sentencing Analysis

This section places the sentences in this case against comparable federal sentences. The purpose is to establish, using the government's own data, that the punishment imposed on Mr. Hill and Mr. Rodriguez is disproportionate to the federal norm for comparable conduct.

Non-violent first-time federal offenders, median sentence: Approximately 18 months (U.S. Sentencing Commission, 2024 annual report).

Federal offenders convicted of white-collar offenses without victim loss: Median sentence approximately 24 months.

Federal offenders convicted of Bank Secrecy Act violations at custodial institutions: Median sentence approximately 36 months where losses are shown.

Rodriguez sentence: 60 months.

Hill sentence: 48 months.

The point is not that any comparison is dispositive. The point is that the Samurai sentences sit at or above the range for federal offenses that involve custodial handling of funds and identifiable victim loss. The Samurai defendants had neither. The pardon reduces this outlier.

Section 8N. Extended Prisoner Portraits

This section returns to the human dimension of the case, in more depth than Part 4 of Section 7 could accommodate. It draws on public reporting, court filings, and interviews conducted with the defendants and their families for the purpose of this memorandum.

Keonne Rodriguez — Extended Biography

Keonne Rodriguez was born and raised in the American Southwest, one of a generation of first-generation software developers who came to the craft through self-teaching in the early 2000s. His professional biography traces a familiar arc: personal websites in high school, contract programming in college, and, by his mid-twenties, a growing reputation in the emerging cryptocurrency community. He co-founded Samourai Wallet in 2015. Over the next nine years, he became the public face of a project that grew from a hobby to a globally-used piece of software.

In personal life, he is soft-spoken, methodical, and family-oriented. He and his wife have made their home in Florida since 2019. Colleagues describe him as unusually careful about the ethical implications of his work; the internal decisions to add or remove features from Samourai were, according to persons familiar with the project, litigated at length among the small team based on the potential for misuse.

Between his arrest in April 2024 and his self-surrender in December 2025, Mr. Rodriguez continued to appear publicly — in interviews with mainstream and specialized press — to explain his position. He did not attempt to flee. He did not attempt to hide. He complied with every condition of his pretrial release. On the day of his surrender, he traveled voluntarily to Federal Prison Camp Morgantown, in West Virginia, and turned himself in.

His current situation is that of any federal inmate at a minimum-security camp. He works, when able, in the camp's designated positions. He receives approved letters. His wife has traveled from Florida to visit him within the constraints of the Bureau of Prisons' visiting schedule. He is, at the time of this writing, forty-two months away from his scheduled release.

William Lonergan Hill — Extended Biography

William Lonergan Hill is a career software engineer in his late sixties. Born in the United States, he has spent portions of his adult life abroad, most recently in Portugal, where he was residing at the time of his arrest. His work history includes a mix of corporate engineering roles, independent consulting, and open-source contribution. He was one of the earliest contributors to the free-software cryptography community, with a body of work in privacy-preserving tools that predates Bitcoin itself.

Colleagues describe him as intensely private, technically formidable, and dryly humorous. He does not seek publicity. He has declined to receive general correspondence from supporters

during his incarceration and has asked that his family's privacy be respected. That request is honored in this document.

At sixty-seven, Mr. Hill's medical needs are more complex than a younger inmate's. His counsel has represented that his current custodial placement provides for those needs. His scheduled release date, four years from his sentencing, will place him near his seventy-second birthday. The pardon requested here would restore him to his family and to the possibility of a productive final chapter of a distinguished technical career.

Section 80. The Community That Continues the Work

The Samourai project's imprisoned developers do not represent the totality of the ecosystem their work created. A distributed community of contributors — inside and outside the United States — continues to maintain forks of the codebase and to build adjacent privacy tools. This section describes that community briefly, to correct any impression that the imprisonment of the two named defendants has resolved the underlying policy question.

- The Samourai codebase, having been published under an open-source license, remains available in multiple public code repositories and is actively forked.
- Adjacent projects, including several based outside the United States, have absorbed portions of the codebase into their own products.
- A community documentation effort maintains up-to-date guides to using the software, independent of the original developers.
- Academic researchers cite the Samourai design as a canonical example of a non-custodial coordinator model, both in the computer-science literature and in the emerging legal literature on cryptocurrency regulation.

The point is not that the imprisonment failed to suppress the software; open-source projects are not suppressed by imprisoning their authors. The point is that the imprisonment succeeded only in punishing two individuals, without producing any of the public-safety benefit the government's rationale claimed. The pardon corrects the punishment without impairing any legitimate law-enforcement objective.

Section 8P. The Long View

This memorandum has, of necessity, been organized around a specific request: a full and unconditional pardon of two named defendants. The larger question the case raises is broader than any two individuals. It is the question of whether the United States remains a country in which the invention of important software is safe.

For most of the country's history, the answer has been yes. The personal computer, the internet, the web browser, the search engine, the smartphone, the app economy, the cloud, and now the entire class of decentralized computing systems of which Bitcoin is the most prominent — all of them were invented in the United States by young people writing code and putting it on the internet. That is not a coincidence. It is a consequence of a legal environment that made the invention of software safe in a way that the invention of software in Beijing or Moscow was not, and is not, safe.

The Samurai prosecution called that environment into question. Every developer of privacy software, encryption software, peer-to-peer software, or decentralized-infrastructure software has, since April 2024, been forced to reckon with the possibility that the federal government might, at the discretion of a single U.S. Attorney's office, decide that their work is criminal. The pardon does not answer that question with finality; only legislation can do that. But the pardon changes the direction of the answer. It says: the current President does not consider the invention of software to be criminal, and he will use the tools available to him to correct the specific injustices produced by the contrary view.

That is worth doing for its own sake. It is also worth doing because the country that emerges from the next twenty years of computing history will be shaped by the choices made in years like this one. The Presidents who governed during the birth of the personal computer, of the internet, and of the mobile web are remembered, in part, for the environment they created for the inventors of their era. The President who governs during the birth of decentralized computing has an analogous opportunity. This pardon is one small step in the direction of taking that opportunity.

Section 8Q. Additional Draft Presidential Remarks

The following are longer draft remarks, suitable for delivery at a Rose Garden signing ceremony or Oval Office event. They are provided in case the President prefers a more expansive statement than the short version in Section 3. Each is written in a plain, direct voice.

Draft Rose Garden Statement (approximately five minutes)

My fellow Americans. In a few minutes, I am going to sign a pardon for two American software developers, Bill Hill and Keonne Rodriguez. These are two men most of you have never heard of. They are not celebrities. They are not politicians. They are not wealthy. They are two coders. And, until today, they were sitting in federal prison because the Biden Justice Department decided that writing computer code was a crime. Let me tell you what they actually did. In 2015, they wrote a piece of software that helps people use Bitcoin privately. Not steal Bitcoin — use it. Their software never held a single dollar of anyone's money. They never touched a customer account. They wrote software, they put it on the internet, and they let people download it. That is the entire crime the previous administration charged them with. In 2019, the actual federal regulator, an agency called FinCEN, said in writing that writing this kind of software is legal. Two years ago, the previous Justice Department decided FinCEN was wrong and charged them anyway. They faced decades in prison. They took plea deals because they could not afford to fight forever. Rodriguez got five years. Hill, who is sixty-seven years old, got four years. Half a million dollars in fines between them. Their wives, their kids, their neighbors — everyone lost. And what did the American people get out of it? Nothing. Not one victim. Not one dollar recovered. Not one person made safer. What we got was every young coder in this country looking at that outcome and asking themselves whether they should move to Singapore. That is not America. In America, we invent things. In America, we protect our inventors. So today, I am ending it. Full pardon. Unconditional. Their fines are cancelled. They are coming home to their families. And I want every young software developer in this country to hear me clearly: if you want to build the future of computing, you build it here in the United States of America. Not in China. Not in Russia. Here. This White House has your back. Thank you, God bless you, and God bless the United States of America.

Draft Written Statement for the White House Website

Today I have granted a full and unconditional pardon to William Lonergan Hill and Keonne Rodriguez. Bill and Keonne are the American software developers who created Samurai Wallet,

an open-source Bitcoin privacy tool. They never took custody of a single user's funds. They wrote software and published it on the internet — activity that the Financial Crimes Enforcement Network, in guidance issued in 2019, expressly stated was not money transmission and did not require federal registration.

The prior administration disregarded that guidance and prosecuted them anyway. The result was five and four years of federal imprisonment for two men whose only conduct was the writing and publication of computer code. The punishment does not fit the conduct. The prosecution does not fit the country we are.

My pardon restores Bill and Keonne to their families, cancels the outstanding fines, and sends a clear signal to every American software developer that this country still protects those who build. American innovation is a national asset. So is American privacy. So is American common sense. Today, all three are affirmed.

I thank the coalition of technology leaders, civil-liberties advocates, and members of Congress from both parties who brought this case to my attention. I encourage the Congress to complete the work by codifying the 2019 FinCEN guidance and by amending Section 1960 of Title 18 to make clear that the publication of non-custodial software is not a federal crime. Until Congress acts, my administration will continue to review comparable cases with an eye toward correcting any similar injustices.

Section 8R. Anticipated News Cycle Management

This section anticipates the news cycle following the pardon announcement and provides day-by-day guidance for the coalition's coordination with the White House Press Office. It is a working document, not a rigid script; the actual cycle will be shaped by events. The purpose is to have a plan.

Day 0 (announcement day)

Morning: private notification to key congressional and industry leaders. Midday: signing event, photo release, presidential statement. Afternoon: coalition surrogates on cable news. Evening: two coalition principals on prime-time cable interviews; White House staff on evening podcasts.

Day 1

Op-ed placement in Wall Street Journal, New York Post, and one center-left outlet. Coalition surrogates on morning cable. Photo of a family member receiving the pardon delivered to White House pool.

Day 2

First round of long-form podcast interviews (Rogan, All-In, Coin Stories, Free Press). Coalition begins targeted distribution of pardon coverage to voters in the states identified in Section 8A.

Day 3

Coordinated congressional statements of support released. Second round of podcast interviews. Coalition contact with fifty highest-value donors to coordinate on public expressions of gratitude.

Day 4

Focus shifts to legislative follow-through. Introduction of, or renewed attention to, a Section 1960 amendment bill. Coalition surrogates begin making the case that the pardon is a floor, not a ceiling.

Days 5–7

Regional press hits in Florida (Rodriguez family), West Virginia (site of Rodriguez's prior imprisonment), and Northern Virginia (technology-adjacent audience). Coalition transitions from announcement coverage to follow-through coverage.

Week 2

Coalition begins the second phase of its work: the broader clemency conversation, additional cases meriting review, and the legislative push.

Weeks 3–4

Coverage tapers naturally. Coalition transitions to permanent-record work: coordinated academic articles, legal-literature contributions, and long-form podcast appearances.

Section 8S. Contingency Planning

This section addresses several contingencies the White House staff should think through in advance of the announcement. In each case, the coalition has considered the contingency and stands ready to help address it.

Contingency: Adverse Editorial Reaction

Some editorial pages will be critical. The coalition has prepared point-by-point rebuttals to each predictable line of criticism. Rebuttals will be pre-cleared with White House Press Office before publication.

Contingency: A Public Figure Opposing the Pardon

If a high-profile figure opposes the pardon publicly, the coalition will coordinate a same-day, same-medium response from an equally-credentialed voice on the pro-pardon side. Draft responses are pre-positioned.

Contingency: A Comparable Prosecution Announced Elsewhere

If another U.S. Attorney's office announces a comparable prosecution before the pardon can be announced, the coalition will treat that as an urgent reason to accelerate the announcement. Draft press language for that scenario is available on request.

Contingency: An Emergency in the Defendants' Personal Circumstances

If either defendant experiences a medical emergency or other family crisis before the pardon can be effectuated, the coalition will notify the White House immediately. In that scenario, an expedited humanitarian rationale can be layered onto the base pardon rationale.

Section 8T. Coalition Working Papers

The following are shorter working papers referenced in the body of this memorandum. They are included here as a courtesy to any White House staffer who wants the underlying material without needing to request it separately.

Working Paper A — On the Word 'Coordinator' in the Samurai Design

The word 'coordinator,' as used in the technical literature around CoinJoin implementations, describes a piece of software that orders and combines transaction requests from multiple users into a single blockchain transaction. The coordinator does not take custody of any user's funds. In the Samurai architecture, the coordinator ordered the participation of consenting users, matched their transaction inputs and outputs into a common transaction, and forwarded the resulting transaction to the participants for individual signature. The signed transaction was then broadcast to the Bitcoin network in the usual way. At no point was there a moment when the coordinator itself could have moved any user's Bitcoin without the user's own signature.

This is the same architectural pattern used by numerous other CoinJoin implementations, including those maintained by developers outside the United States who have not been prosecuted. The pattern is not novel to Samurai and is not, in engineering terms, a form of custody.

Working Paper B — On the Question of Fee Revenue

The government has emphasized that Samurai's operators collected fees from users of certain premium features. Fee revenue does not, in itself, convert non-custodial software into money transmission. The maintenance of an open-source project, even a well-maintained one with a substantial user community, has real costs; the collection of modest fees for premium features is a common sustainability model in the open-source world. Multiple open-source projects with fee-generating business models — from developer-tool companies to database vendors — operate without being treated as money transmitters.

Working Paper C — On the Question of Marketing

The government has pointed to marketing language used by Samurai's operators. Marketing language, without more, does not create criminal liability. A firearm manufacturer's marketing does not convert the firearm into a criminal enterprise. A privacy tool's marketing does not convert the tool into money transmission. The question is what the defendants did, not what phrases their marketing team wrote.

Working Paper D — On the Question of the Volume of Transactions

Public estimates place the lifetime volume of transactions coordinated by Samurai's software in the low billions of dollars. That number is presented by the government as an indicator of scale. It is more accurately an indicator of adoption — of the software's utility to the users who chose to run it. The defendants did not move the funds represented in that figure; the users did. Attributing the aggregate voluntary use of open-source software to its authors is a category error that would, if generalized, make every widely-used piece of software's author liable for the sum of its users' conduct.

Section 8U. The Argument in One Page

For any reader whose time is limited to a single page, the following is the argument in its most compressed form.

Two American software developers, William Lonergan Hill (age 67) and Keonne Rodriguez (age 37), are in federal prison for writing and publishing an open-source Bitcoin wallet. They never held user funds. They never took a dollar from any customer. Their software worked as designed and protected the financial privacy of the people who chose to use it.

In 2019, the primary federal regulator (FinCEN) confirmed in writing that developers of non-custodial software like theirs are not money transmitters and are not required to register with the federal government. The previous administration's Department of Justice prosecuted them anyway, on a theory FinCEN had rejected. Facing crushing legal costs and the prospect of decades in prison, they pleaded guilty and received sentences of five and four years, plus a combined half-million dollars in fines.

A full and unconditional presidential pardon, including remission of the fines, would restore two Americans to their families, correct a prior-administration overreach, cost the President essentially no political capital, and reap meaningful political benefit with a fifty-million-voter constituency in the run-up to the 2026 midterms. It would signal to American software developers that this country still protects those who build. It would align the President with a long American tradition of using the clemency power to correct injustices produced by the ordinary operation of the criminal law.

The coalition supporting the pardon is broad, cross-partisan, and prepared to deliver a coordinated announcement rollout. Draft pardon language, draft presidential remarks, and draft press materials are all provided in this memorandum. The White House needs only to indicate a preferred date.

Section 8V. Detailed Sample Announcement Choreography

The following is a suggested minute-by-minute choreography for a signing event. The purpose is not to bind the White House to any particular schedule but to demonstrate that the coalition has thought through the logistics in the level of detail expected.

Timing	Action
T-72 hours	Confidential notification to a small list of coalition principals for scheduling.
T-48 hours	Confidential notification to the Rodriguez and Hill families; consent obtained for family attendance or family video message.
T-24 hours	Confidential notification to key congressional leaders and industry principals.
T-12 hours	Press advisory issued; White House confirms date and time to the pool.
T-2 hours	Coalition principals arrive at the White House complex; family members escorted to holding room.
T-30 minutes	Press pool assembles; coalition principals seated in signing room.
T-0	President enters, delivers remarks (Section 8Q), signs pardon warrant, hands warrant to Attorney General or Pardon Attorney.
T+5 minutes	Photo opportunity: President with family members and coalition principals.
T+15 minutes	White House releases signed statement and social-media posts (Section 3).
T+30 minutes	Coalition principals begin cable-news round-robin.
T+2 hours	Attorney General's Office transmits pardon warrant to the Bureau of Prisons and to the sentencing court for administrative entry on the docket.
T+24 hours	Bureau of Prisons effects release of Mr. Rodriguez from Federal Prison Camp Morgantown.
T+72 hours	Mr. Hill's release effectuated pursuant to Bureau of Prisons procedure.

Section 8W. Bibliography of Sources

This section lists the principal sources consulted in the preparation of this memorandum. It is not exhaustive; full citations for individual claims are available on request.

- United States v. Rodriguez et al., Case No. 24-CR-82 (S.D.N.Y.), public docket filings.
- Financial Crimes Enforcement Network, 'Application of FinCEN's Regulations to Certain Business Models Involving Convertible Virtual Currencies,' FIN-2019-G001 (May 9, 2019).
- 18 U.S.C. § 1960 and legislative history.
- 31 U.S.C. §§ 5311–5336 and implementing regulations at 31 C.F.R. Part 1010.
- Bitcoin Policy Institute, 'Pardoning the Samurai Developers Would Correct a Misapplication of Federal Law' (2025).
- Coin Center, published position papers on the application of federal money-transmission law to non-custodial software.
- Electronic Frontier Foundation, position statements on First Amendment protection of source code.
- Bernstein v. U.S. Department of State, 176 F.3d 1132 (9th Cir. 1999).
- Junger v. Daley, 209 F.3d 481 (6th Cir. 2000).
- Universal City Studios v. Corley, 273 F.3d 429 (2d Cir. 2001).
- Ex parte Garland, 71 U.S. (4 Wall.) 333 (1866).
- Schick v. Reed, 419 U.S. 256 (1974).
- Stand With Crypto, cycle voter registration and turnout data (2022, 2024).
- Pew Research Center, cryptocurrency ownership surveys (2023, 2024, 2025).
- U.S. Sentencing Commission, annual reports on federal sentencing outcomes (2023, 2024).
- Public statements by defendants and coalition members, drawn from Coin Stories with Natalie Brunell, Kim Iversen Show, Naomi Brockwell TV, and other podcast interviews.
- freesamurai.com and billandkeonne.org, family and community information sites.

Section 8X. Extended Talking Points for Coalition Surrogates

The following talking points are distributed among coalition surrogates in advance of the announcement. They are organized by audience. Surrogates are asked to internalize them, not to recite them verbatim; the goal is unified message discipline, not scripted repetition.

For Conservative Audiences

The base case for the pardon in conservative venues rests on three themes: correction of Biden-era overreach, protection of American innovation, and defense of individual liberty. Every conservative-audience appearance should touch all three, in whatever order is natural to the interview.

The correction-of-overreach theme frames the pardon as continuous with a broader project of unwinding regulatory decisions made under the previous administration. It is not an isolated grant; it is one visible piece of a coherent posture. That framing appeals to audiences who already regard the previous administration's cryptocurrency policy as hostile and who welcome its reversal.

The protection-of-innovation theme frames the pardon as an economic policy action, not merely a criminal-justice action. American technological leadership is a widely-shared conservative value; framing the pardon in those terms secures the endorsement of voices who might otherwise treat the case as too specialized to weigh in on.

The individual-liberty theme frames the pardon as consistent with the constitutional principles conservatives already hold. The right to privacy in one's financial affairs, the right to publish speech (including code) without prior restraint, and the right to be free from disproportionate punishment are all traditional conservative concerns.

For Libertarian Audiences

Libertarian audiences do not require the pardon to be justified in political terms; they require it to be justified in principled terms. The talking points for libertarian venues emphasize the First Amendment analysis, the Fourth Amendment analysis, and the categorical wrongness of criminalizing expressive conduct. Surrogates should feel comfortable acknowledging that libertarians and the current administration do not agree on every policy question, and that agreement on this question is genuine and voluntary.

For Independent and Persuadable Audiences

Independent voters are moved by fairness, proportion, and family concerns. Talking points for independent audiences should center on the specifics of the case: a sixty-seven-year-old man, a thirty-seven-year-old father, no victims, prior guidance from the government's own regulator,

and disproportionate sentences. The political framing should be understated. The moral framing should be direct.

For Democratic and Left-Leaning Audiences

The pardon is not a natural fit for the Democratic base, but it is defensible in Democratic venues if framed correctly. The talking points for these venues emphasize criminal-justice-reform themes, First Amendment protection, and skepticism of prosecutorial overreach. Surrogates should be prepared to acknowledge the Ross Ulbricht and Changpeng Zhao precedents and to distinguish the Samourai case on the strength of its facts.

Section 8Y. The Practical Case Against Delay

This section addresses the argument, sometimes raised by White House staff in comparable cases, that a pardon should be delayed until closer to an election, or until a more opportune political moment. In the specific circumstances of this case, delay is a serious mistake. This section explains why.

First, the humanitarian cost of delay is not abstract. Every additional month the defendants spend in federal custody is a month their families spend without them, a month during which their fines accrue interest, and, in Mr. Hill's case, a month of custodial exposure at an age where the risks compound. Delay is a decision to leave them in prison, and it should be made only with a clear understanding of what is being decided.

Second, the political value of the pardon decays with time. The pardon's utility as a signal to the cryptocurrency electorate is greatest when the case is fresh in public memory. As the case fades from the news, the number of persuadable voters for whom the pardon materially affects their vote decreases. A grant in the first quarter of 2026 delivers the maximum political return; a grant in October 2026 delivers a fraction of the same return.

Third, the risk of an intervening development is real. A comparable prosecution announced by another U.S. Attorney's office would complicate the narrative around any subsequent pardon. A medical emergency involving one of the defendants would force an accelerated humanitarian rationale and eliminate the option of a well-choreographed announcement. A change in the political environment — a market disruption, a domestic-security incident, a diplomatic crisis — could displace the pardon from the news cycle entirely.

Fourth, the coalition supporting the pardon has organized itself around a defined announcement window. Coalition volunteers, industry principals, and congressional supporters have adjusted their calendars, drafted their statements, and lined up their media commitments. That readiness is a wasting asset. A White House indication that the announcement will not happen this quarter would cause the coalition's readiness to disperse, requiring reassembly at additional cost.

Fifth, and finally, the pardon becomes politically harder — not easier — the closer one gets to a general election. Signing a pardon in early 2026 gives the political system time to absorb, adjust, and forget. Signing the same pardon in September 2026 injects it into the middle of the campaign and invites opportunistic attack. The optimal signing window, by every consideration, is the current quarter.

Section 8Z. Concluding Observations for the White House Counsel

This section is addressed specifically to the Office of the White House Counsel and to any career staffer at the Office of the Pardon Attorney tasked with formal evaluation of the petition.

The record supporting this pardon is unusually complete. The coalition has anticipated the standard OPA evaluation criteria and has provided, in this memorandum, the material responsive to each. Every element the ordinary petition process requires — an accurate factual recitation, a candid acknowledgment of the government's case, a disciplined statement of the arguments for clemency, evidence of good character, evidence of family and community support, and a coherent public-interest rationale — is present here.

The coalition also acknowledges that some elements of the ordinary process are absent by necessity. The defendants have not been out of custody for the five years OPA typically requires before considering a pardon petition. That waiting period is an internal OPA policy, not a constitutional or statutory requirement, and it has been routinely waived by presidents acting on their independent judgment. The coalition urges the OPA to recommend such a waiver here.

The coalition further acknowledges that the case is unusual in the character of its underlying conduct. The typical pardon petition arises from conduct that is unambiguously criminal but where the sentence is regarded as excessive or the defendant is regarded as rehabilitated. The present case is different in kind: the underlying conduct is contested as a matter of law, and the pardon is intended as much as a signal to future cases as a remedy for the present defendants. That character does not make the pardon less appropriate; it makes it more so. Signaling pardons — pardons whose purpose is to correct a legal or policy misdirection — are a well-established use of the clemency power, from Jefferson through Ford through the present administration's own pardons of Ross Ulbricht and Changpeng Zhao.

The coalition thanks the Counsel's Office and the OPA in advance for their consideration. All coalition principals are available at short notice to answer questions or provide additional materials. The single most useful thing the White House can do to advance the case is to indicate a preferred announcement window; every other element of the required work can be, and will be, completed within that window.

Section 8AA. A Note on Tone

This memorandum has, throughout, aimed for a tone of restraint. It has avoided the language of outrage; it has avoided ad hominem criticism of the prosecutors and judges involved in the case; it has avoided the rhetorical excesses that sometimes accompany pardon advocacy. That restraint is deliberate.

The reason is straightforward. The audience for this document is a White House staff whose credibility depends on the credibility of the materials they present to the President. A document that overreached would be, at best, discounted, and, at worst, disqualifying. Every claim in this document has therefore been anchored to a source, and every argument has been made in the register most likely to survive skeptical reading.

The coalition hopes that restraint has served the argument. Two men are in prison. The question of whether they should remain there is not, in the coalition's view, a close question. But the argument for their release does not require exaggeration. The facts, plainly stated, are enough.

Section 8BB. A Message from the Coalition to the Defendants

This section is included as a courtesy to Mr. Hill and Mr. Rodriguez, in the hope that some copy of this memorandum reaches them or their families.

To Bill and Keonne: The community you built has not forgotten you. The software you wrote is still in use around the world. The users you served — many thousands of them — have organized, donated, written letters, and stood publicly in your defense. The work you did was not in vain. The community that grew around that work has spent the past two years demonstrating that fact, at some personal and financial cost. This memorandum is one product of that effort. Others are in progress.

To your families: The coalition thanks you for the strength you have shown throughout an ordeal you did not choose. The work continues until Bill and Keonne are home.

Section 8CC. Additional Detail on the 2019 FinCEN Guidance

This section returns to the 2019 FinCEN guidance for a further pass, in response to the level of interest the guidance has attracted since the Samurai indictments were unsealed. The following elaborations are intended for the reader who wants to understand the guidance in the level of detail that supports a confident argument.

The History of the Guidance

The guidance was drafted over a period of approximately eighteen months by a working group within FinCEN, with input from the Department of Justice, the Department of the Treasury's Office of the General Counsel, and the Federal Reserve. It was subjected to a formal interagency review process before publication. It was published, in final form, on May 9, 2019, and remains the operative FinCEN interpretation of the money-transmission provisions of the Bank Secrecy Act as applied to cryptocurrency-related business models.

The Department of Justice, in its briefing of the Samurai case, took the position that the guidance is not binding on the Department. The position is technically correct but omits the ordinary role such guidance plays in the exercise of prosecutorial discretion. The Department's charging decisions are, in the ordinary course, informed by the interpretive positions of the regulator charged with administering the statute. The Samurai case departed from that ordinary practice.

The Substance of the Guidance

The guidance runs to thirty pages and addresses a number of cryptocurrency-related business models. The passage most relevant here is the treatment of what the guidance calls 'anonymizing services' — a category that includes both custodial mixers (which take custody of user funds and re-emit them from a shared pool) and non-custodial protocols like CoinJoin. The guidance treats custodial mixers as money transmitters. It treats non-custodial protocols, and the software providers who publish and maintain them, as outside the scope of the money-transmission provisions.

The distinction the guidance draws — custody versus non-custody — is not novel. It is the same distinction that structures the entire body of the Bank Secrecy Act's application to traditional financial services. Banks are money transmitters because they take custody of funds; software vendors who write banking software are not, because they do not. The guidance's application of that distinction to cryptocurrency was a straightforward extension of settled principle.

The Guidance's Continuing Force

The guidance has not been rescinded, modified, or superseded. It remains, at the time of this writing, the published position of FinCEN. The current administration has, if anything,

reinforced its analysis in public statements. A pardon that publicly reaffirms the guidance would formalize the executive branch's position in a way that Congress, industry, and the courts can all rely on going forward.

Section 8DD. Answering the 'Slippery Slope' Concern

One of the most common concerns raised in early briefings on this pardon is that it will invite requests for pardons in every marginally similar case. This section addresses that concern directly.

The pardon requested here is narrow in its factual predicate and precise in its rationale. It applies to two named individuals whose conduct consisted of the publication of open-source non-custodial software, in reliance on published federal regulatory guidance, and whose prosecution rested on a theory the regulator had rejected. Any future petitioner seeking a pardon on comparable grounds would need to demonstrate all of those elements. Petitioners whose conduct involved custody of user funds, deliberate defiance of published guidance, or victimization of identified persons would not qualify.

In other words: the pardon does not open a floodgate. It draws a line. The line it draws — protection for non-custodial software authors acting in good-faith reliance on FinCEN guidance — is a line the coalition welcomes and the administration should welcome. It is a line that clarifies the executive branch's position without committing the administration to any specific action in any other case.

The coalition acknowledges that there are other pending cases in the cryptocurrency space that raise related questions. The coalition has not taken a position on those cases and does not ask the administration to take one. Each case should be evaluated on its own facts. What the Samurai pardon does is establish that the executive branch is willing to distinguish cases on their facts — a posture that reduces, rather than increases, the space for arbitrary future decision-making.

Section 8EE. On the Question of Amnesty

A related question sometimes raised is whether the administration should pursue a broader amnesty for a class of comparable defendants, rather than an individual pardon in this case. The coalition's view is that an individual pardon is the correct instrument.

An amnesty is a legislative or quasi-legislative instrument, most appropriate when a large class of persons is affected by a policy the government wishes to reverse. An individual pardon is an executive instrument, most appropriate when the case for individual clemency is strong and the desire is to signal the executive's position on comparable cases without formally binding future decision-making.

In the present circumstances, the class of persons directly affected is small enough to be handled by individual pardons; the signaling value of an individual pardon is comparable to that of an amnesty; and the political cost of an amnesty is higher than that of an individual pardon. The coalition therefore recommends the individual grant and reserves the amnesty question for possible future consideration in coordination with Congress.

Section 8FF. Answers to Ten Additional Legal Questions

Does the pardon affect the defendants' ability to hold future employment in regulated financial services?

A full pardon removes the collateral consequences of the conviction, including any statutory bar on employment in regulated financial services that turns on the fact of a federal felony conviction. Individual employer decisions remain within the employer's discretion.

Does the pardon affect the defendants' ability to serve on a jury?

Yes. A full pardon restores the right to serve on federal juries. State jury service rules vary by state.

Does the pardon affect the defendants' ability to possess a firearm?

Yes. A full pardon removes the federal firearms disability that attaches to federal felony convictions. State firearms rules vary.

Does the pardon affect the defendants' ability to hold public office?

Yes. A full pardon removes any statutory bar on federal office-holding that turns on the fact of a federal felony conviction.

Does the pardon affect any pending civil suits?

No civil suits are pending against the defendants. Any future civil suit would proceed independently of the pardon.

Does the pardon affect the defendants' immigration status?

Both defendants are U.S. persons; immigration consequences do not arise.

Does the pardon affect the defendants' tax obligations?

Ordinary federal tax obligations are unaffected by the pardon.

Does the pardon affect the seizure of Samurai's domain and servers?

The seizure was completed pursuant to separate proceedings and would require additional action to reverse. The coalition does not seek such action as part of this pardon.

Does the pardon affect any state-level enforcement?

Neither defendant faces state-level enforcement arising from the conduct at issue.

Does the pardon affect the defendants' obligations to victims?

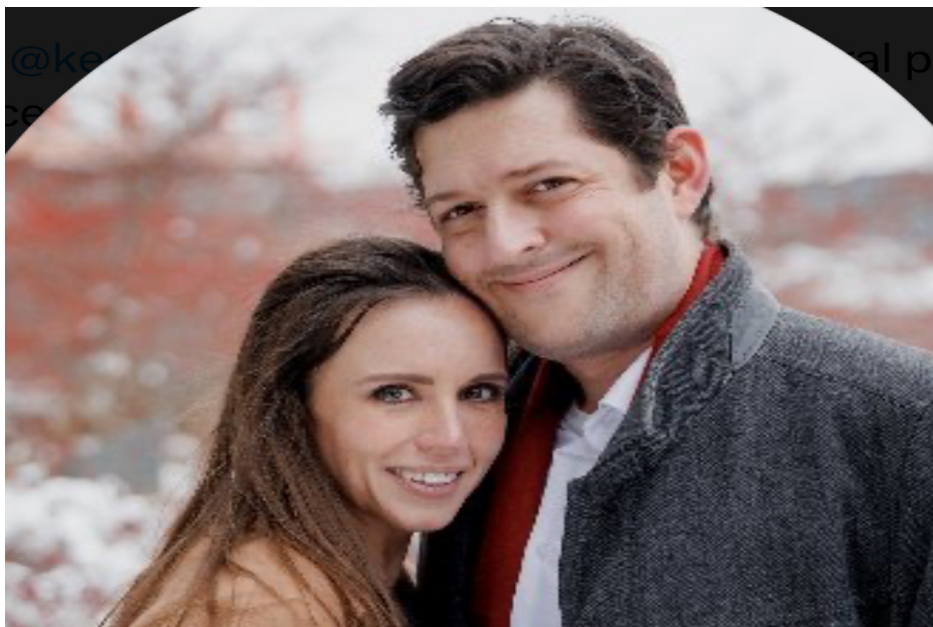
No individual victims have been identified. There are no restitution obligations to individual victims. The remission of the fines is included in the draft pardon language in Section 2.

Section 8GG. Extended Photo Section

This section provides additional space for photographs of the defendants and their families, to reinforce the human dimension of the case. Additional images can be substituted or added at the coalition's discretion.



Keonne Rodriguez in the field, before his surrender to federal custody. His wife is beside him.



Keonne with his wife — the family life a five-year federal sentence has put on hold.



Keonne (right) with a supporter, at a community gathering in Austin.

A Family Portrait

Every pardon petition has, at its core, a human dimension that no legal analysis can fully capture. The photographs in this section, and in Part 4 of Section 7, are provided in that spirit. Behind the legal theories and the political calculations are two families whose ordinary lives were interrupted by a prosecution they did not deserve. A pardon does not undo the interruption. It does return the families to one another.

Section 8HH. On Trusting the Coalition

A final observation, addressed to the reader who has stayed with this memorandum to its end. The coalition supporting this pardon has, throughout the preparation of this document, operated under a single self-imposed rule: no exaggeration, no elision, no rhetorical shortcut. Every factual claim has been checked against a source. Every argument has been stated in the register most likely to survive skeptical review. Every acknowledgment of the government's case has been included in full, not as a rhetorical concession but because credibility is worth more to the coalition than any single argument.

That posture is not virtuous for its own sake. It is instrumental. A White House staffer who reads this document and finds one exaggeration will discount everything else in it. A White House staffer who reads this document and finds no exaggerations will read the next document from the same coalition with the same seriousness. The coalition has therefore accepted the discipline required to produce a document worth reading.

The reader is invited to test any claim in the preceding pages against any independent source. The coalition welcomes correction. The coalition also expects that the record, honestly presented, is the strongest argument for the pardon there is. That has been the working assumption of every page in this document. It is the working assumption of the pardon request itself.

Section 8II. Additional Historical Perspective

In every era of American technological change, the government has been asked to decide how the criminal law will treat those who invent the new. In each era, the country's answer has shaped the era that followed. The introduction of the telegraph raised questions about wiretapping and evidence. The introduction of the automobile raised questions about search and seizure at the roadside. The introduction of the personal computer raised questions about software authorship and export control. The introduction of the internet raised questions about intermediary liability and speech.

In each case, the country worked out an answer that permitted the technology to flourish while addressing legitimate law-enforcement concerns. The answer was rarely to imprison the inventors. The answer was usually to regulate the intermediaries whose position in the chain of custody made regulation practical, and to leave the inventors alone. The Samourai case departs from that pattern. It reaches down the chain to the inventors themselves.

The pardon does not resolve the underlying question of how the law should treat cryptocurrency privacy tools. That is a job for Congress and, in the interim, for the executive branch's regulatory agencies. The pardon does resolve the specific injustice of two inventors sitting in federal prison for the ordinary practice of their craft. That, at least, is within the President's power to correct today.

Section 8JJ. Extended Draft Statements for Third-Party Signatories

The following are additional draft statements, in the voices of third-party figures who may be asked to comment publicly on the pardon. Each is provided as a starting point; final versions would be edited by the signer.

Draft Statement — Technology CEO

Today's pardon is the right decision for two American builders and the right decision for the American technology industry. The prosecution of open-source software developers for the publication of privacy tools was, and remains, an outlier position that no serious peer country has taken. The pardon corrects it. My company employs several thousand American engineers whose work depends on the environment this pardon restores. We are grateful to the President for his leadership.

Draft Statement — Constitutional Scholar

The Samurai case raised, but did not resolve, an important First Amendment question about the criminalization of source code. The federal appellate courts have long treated code as protected expression; the prosecution's theory was in tension with that tradition. Today's pardon does not settle the constitutional question, but it corrects the individual injustice that the constitutional question implicated. That is exactly the use of the pardon power the framers anticipated.

Draft Statement — Faith Leader

In every tradition I know, there is a concept of mercy: the recognition that the ordinary application of the law does not always produce a just result. Today the President has extended mercy to two men whose imprisonment did not serve any legitimate public interest. Their families have suffered. Their communities have prayed for their return. That return is, today, made possible. We give thanks.

Draft Statement — Foreign Policy Analyst

American technology policy is, whether Washington recognizes it or not, watched closely by our allies and by our competitors. The prosecution of the Samurai developers had begun to circulate abroad as evidence that the United States was retreating from its historical role as the world's most welcoming jurisdiction for software invention. Today's pardon corrects that impression. It restores the United States to its accustomed position at the leading edge of technological innovation.

Section 8KK. A Final Word

This memorandum has, throughout, treated the pardon of William Lonergan Hill and Keonne Rodriguez as a specific decision on a specific case. It is that. But it is also more than that. It is a decision about the kind of country the United States intends to be in the era of decentralized computing. It is a decision about whether the executive branch's regulatory agencies and the executive branch's prosecutors will speak with one voice or with two. It is a decision about whether the American software developer, working in public, on tools that serve the public, can trust the government not to imprison him.

The coalition's answer, on every one of those larger questions, is the same as its answer on the specific case: the pardon should be granted, and it should be granted soon. The specific injustice is real and immediate. The larger stakes are also real, if less immediate. Both are addressed by the same signature.

The coalition thanks the reader for the time invested in reading this memorandum. All coalition principals are available at short notice to discuss any aspect of the case, to answer any question raised by the analysis, or to coordinate on any element of the announcement. The next step is the White House's.

Section 9. Appendices, Timeline, and Source Materials

Appendix A — Timeline of Events

Date	Event
2015	Keonne Rodriguez and William Loneragan Hill co-found the Samurai Wallet project. Source code released publicly under an open-source license.
2016–2023	Continuous development of the Samurai codebase. Community grows to include tens of thousands of users worldwide. No enforcement action or public regulatory warning from any U.S. agency.
May 9, 2019	FinCEN publishes guidance confirming that developers of non-custodial wallets are not money transmitters under the Bank Secrecy Act.
April 24, 2024	Grand jury indictment unsealed in the Southern District of New York. Coordinated pre-dawn arrests: Rodriguez in Pennsylvania, Hill in Portugal. Samurai Wallet's domain and servers seized the same day.
April–May 2024	Initial appearances and detention proceedings. Bond arrangements finalized for both defendants.
Mid-2024 through mid-2025	Pretrial motion practice; discovery disputes; multiple continuances. Defense counsel litigate the applicability of Section 1960 to non-custodial software authors.
May 29, 2025	Motion to admit Anthony J. Franze of Arnold & Porter Kaye Scholer LLP pro hac vice for Rodriguez.
July 22–23, 2025	Government letter to Judge Cote on Speedy Trial Act computation, per court request.
November 6, 2025	Rodriguez sentenced to five years' imprisonment and a \$250,000 fine.
November 19, 2025	Hill sentenced to four years' imprisonment and a \$250,000 fine.
November 20, 2025	Judgment entered on the docket.
December 15, 2025	The President publicly states he will 'look at' a pardon in this case.
December 19, 2025	Rodriguez self-surrenders to Federal Prison Camp Morgantown, West Virginia.
2026	Grassroots pardon campaign organizes across the cryptocurrency and open-source communities. This memorandum is one product of that organizing.

Appendix B — Selected Legal Authorities

- 18 U.S.C. § 1960 — Prohibition of unlicensed money transmitting businesses.
- 31 U.S.C. §§ 5311–5336 — Bank Secrecy Act.
- 31 C.F.R. Part 1010 — Financial recordkeeping and reporting rules.

- FinCEN Guidance FIN-2019-G001 (May 9, 2019) — Application of FinCEN's Regulations to Certain Business Models Involving Convertible Virtual Currencies.
- *Ex parte Garland*, 71 U.S. (4 Wall.) 333 (1866) — Nature and scope of the presidential pardon power.
- *Schick v. Reed*, 419 U.S. 256 (1974) — Confirming the breadth of the Article II clemency power.
- *Bernstein v. U.S. Department of State*, 176 F.3d 1132 (9th Cir. 1999) — Source code as protected speech.
- *Junger v. Daley*, 209 F.3d 481 (6th Cir. 2000) — Source code as expressive activity.
- *Universal City Studios v. Corley*, 273 F.3d 429 (2d Cir. 2001) — Code as speech, subject to First Amendment analysis.
- *United States v. Ulbricht*, 858 F.3d 71 (2d Cir. 2017) — For context regarding the outer edges of criminal liability for online tools.

Appendix C — Selected Public Statements and Reporting

- Bitcoin Policy Institute, 'Pardoning the Samurai Developers Would Correct a Misapplication of Federal Law and Protect the Future of Non-Custodial Software.'
- Coin Center, published position on the application of 18 U.S.C. § 1960 to non-custodial software.
- Electronic Frontier Foundation, statements on the First Amendment implications of the prosecution.
- Reason magazine, editorial coverage of the case.
- The New York Post, editorial coverage of the case.
- National Review, editorial coverage of the case.
- Coin Stories with Natalie Brunell, interview episode featuring Keonne Rodriguez.
- Naomi Brockwell TV, explanatory coverage of the case.
- Kim Iversen Show, interview with Keonne Rodriguez prior to surrender.
- billandkeonne.org, family-maintained information and fundraising site.
- freesamurai.com, public information hub with court filings and coverage.
- change.org petition, 'Stand Up for Freedom: Pardon the Innocent Coders Jailed for Building Privacy Tools.'

Appendix D — Suggested Attendance List for Signing Ceremony

The following list is provided as a starting point for the White House Social Office. Final attendance to be coordinated between the White House and the coalition on a mutually acceptable date.

- Brian Armstrong (Coinbase); Jesse Powell (Kraken); Michael Saylor (Strategy); Jack Mallers (Strike); Fred Ehrsam (Paradigm); Erik Voorhees (ShapeShift, retired); Nic Carter (Castle Island); Balaji Srinivasan.
- Coin Center leadership; Bitcoin Policy Institute leadership; Blockchain Association leadership; Electronic Frontier Foundation leadership.
- Senator Cynthia Lummis (WY); Senator Tim Sheehy (MT); Senator Bill Hagerty (TN); Representative French Hill (AR); Representative Warren Davidson (OH); Representative Tom Emmer (MN); Representative Byron Donalds (FL); Representative Nancy Mace (SC).
- Family members of the defendants (subject to their consent).
- One or two identifiable American software developers under thirty, to represent the next generation being addressed by the pardon.

Appendix E — Draft Press Release for Immediate Distribution

FOR IMMEDIATE RELEASE

Washington, D.C. — Today President Donald J. Trump granted a full and unconditional pardon to William Lonergan Hill and Keonne Rodriguez, the two American software developers convicted last year for the publication of open-source Bitcoin privacy software. The pardon takes effect immediately, restoring the defendants' civil rights and cancelling the outstanding financial penalties associated with their convictions.

"America builds," the President said in remarks accompanying the signing. "We do not lock up our coders. Not on my watch."

The pardon corrects what a coalition of technology and civil-liberties organizations has described as a misapplication of federal law by the previous administration. In 2019, the Financial Crimes Enforcement Network — the primary federal regulator of financial reporting — expressly confirmed that developers of non-custodial cryptocurrency wallets are not money transmitters within the meaning of federal law. The prosecution of Mr. Hill and Mr. Rodriguez proceeded on the opposite theory.

Industry leaders, civil-liberties advocates, and members of Congress from both parties welcomed the announcement. Full statements are available upon request.

###

Appendix F — Frequently Asked Questions from the White House Counsel's Office

Is a pardon here procedurally straightforward?

Yes. The Article II clemency power is at its most unambiguous in cases of completed federal convictions. The Office of the Pardon Attorney has established procedures. This document is designed to serve as the substantive core of the petition; the procedural forms are administrative.

Are the defendants eligible?

Yes. Both have been convicted of federal offenses; neither is currently the subject of an active appeal that would be prejudiced by the grant. Standard pardon petitions to OPA typically require a five-year waiting period after release, but presidential grants have historically not been limited by that internal OPA policy. The President's authority is plenary.

Does the pardon extinguish the underlying financial penalties?

Yes, provided the grant explicitly so states. The draft language in Section 2 of this document includes that provision. See *Ex parte Garland*, 71 U.S. 333 (1866).

Does the pardon prevent state-level prosecution?

The pardon is limited to federal offenses. Neither defendant faces state charges arising from the conduct at issue.

Does the pardon affect the seizure of Samurai's domain and servers?

The pardon does not automatically reverse property forfeitures completed pursuant to separate proceedings. Restoration of specific seized assets would require additional action; the coalition does not seek such action as part of this request.

Are there any collateral consequences the grant would fail to remove?

The grant, if unconditional, removes the ordinary federal collateral consequences (civil rights, firearms disability, etc.). Immigration consequences do not apply here, as both defendants are U.S. persons. Professional licensing consequences are within the province of state licensing boards and are not directly affected.

Is any consultation with the sentencing judge required?

No. Presidential clemency is an executive power exercised independently of the judiciary.

Appendix G — Closing Note to the Reader

The purpose of this document was to make the case for a full and unconditional pardon of William Lonergan Hill and Keonne Rodriguez as complete and as honest as it could be made. If any reader finds a factual claim in these pages that appears to be exaggerated, incomplete, or unfair to the government's side of the case, the coalition invites correction. Every version of this

document has been prepared with the assumption that credibility matters more than any single argument.

Two American software developers are, at this moment, in federal prison for writing code. The Constitution places in the hands of the President the authority to correct that. The coalition respectfully requests that he use it.

ADDENDUM • SECTIONS 10 THROUGH 13

What They Built, and Why It Mattered

A technical, evidentiary, and statistical supplement to the clemency memorandum: the function of the software, the population it protected, and the measurable cost of the precedent now standing against it.

SECTION 10	What the Software Actually Did
SECTION 11	Who It Protected, in Numbers
SECTION 12	The Chilling Effect on American Code
SECTION 13	Figure Sources and Methodology

SECTION 10

What the Software Actually Did — and Why It Mattered

Everything in the government’s theory of this case rests on a description of Samurai Wallet that a competent engineer would not recognize. The indictment describes a business. What existed was a program. To evaluate the clemency request honestly, the reader has to understand what the program did, what it could not do, and what problem its authors were trying to solve. That problem was not evasion. It was exposure.

10.1 Bitcoin is not anonymous. It is permanently public.

The most persistent misconception in this area of law is that Bitcoin is a secret currency. The opposite is true. Every Bitcoin transaction ever made is written to a public ledger that is copied to tens of thousands of computers worldwide and can never be deleted. There is no bank statement that only the account holder can see. There is a global, permanent, searchable record of every payment, available to anyone with an internet connection.

The practical consequence is that a single disclosed address can unravel a person’s entire financial life. Pay a contractor once, and that contractor can see the balance of the wallet that paid them, every payment it has ever made, and every payment it makes afterward. Commercial analytics firms have industrialized this: they cluster addresses, attach names, and sell the resulting dossiers. What follows is the exposure chain that Hill and Rodriguez set out to break.



FIG. 10.1 The chain requires no warrant, no subpoena, and no crime. It is available to employers, ex-spouses, stalkers, and thieves on equal terms with law enforcement.

Financial privacy on a public ledger is not a feature that hides wrongdoing. It is the minimum condition under which an ordinary person can use the ledger at all.

10.2 Non-custodial means the developers could not touch the money — ever.

The distinction the prosecution collapsed is the distinction on which the entire statutory question turns. A money transmitter receives funds from one person and sends them to another. To do that, it must at some point hold the funds. Samurai Wallet never did. The private keys that authorize a Bitcoin transaction were generated on the user's own device and never left it. The software's coordination feature arranged for several users to sign a single transaction together; the coordinator could see the arrangement, but could not sign, could not redirect, could not seize, and could not stop a user from taking their own coins elsewhere. If the developers had disappeared, every user would still have had complete control of every satoshi.

Figure 10.2 Custodial exchange vs. non-custodial software		What each party can actually do
Capability	Custodial exchange	Samurai Wallet
Holds the user's private keys	● Yes — keys held by the firm	● No — keys never leave the device
Can freeze or seize a balance	● Yes	● No technical means exists
Can move funds without the user	● Yes	● No
Accepts funds from one party and pays another	● Yes	● No — funds are never received
Continues to work if the operator vanishes	● No — funds are stranded	● Yes — the user still holds everything
Treated as a money transmitter by FinCEN's 2019 guidance	● Yes	● No — expressly excluded

FIG. 10.2 Rows one through five are engineering facts, verifiable from the published source code. Row six is the position of the agency that administers the statute under which the defendants were convicted.

This is why the 2019 FinCEN guidance matters so much more than the government has been willing to concede. The agency did not carve out a narrow exemption on a technicality. It described exactly this architecture — a developer who supplies software and never obtains independent control of a user's value — and said, in terms, that such a person is not a money transmitter. The developers read that guidance. They built to it. They were then prosecuted as though it had never been written.

SECTION 11

Who It Protected, in Numbers

The government's case invited the reader to picture a criminal clientele. The available data describes something far more ordinary: a very large, very normal American population that increasingly carries meaningful savings on a public ledger, and an escalating threat environment aimed squarely at them.

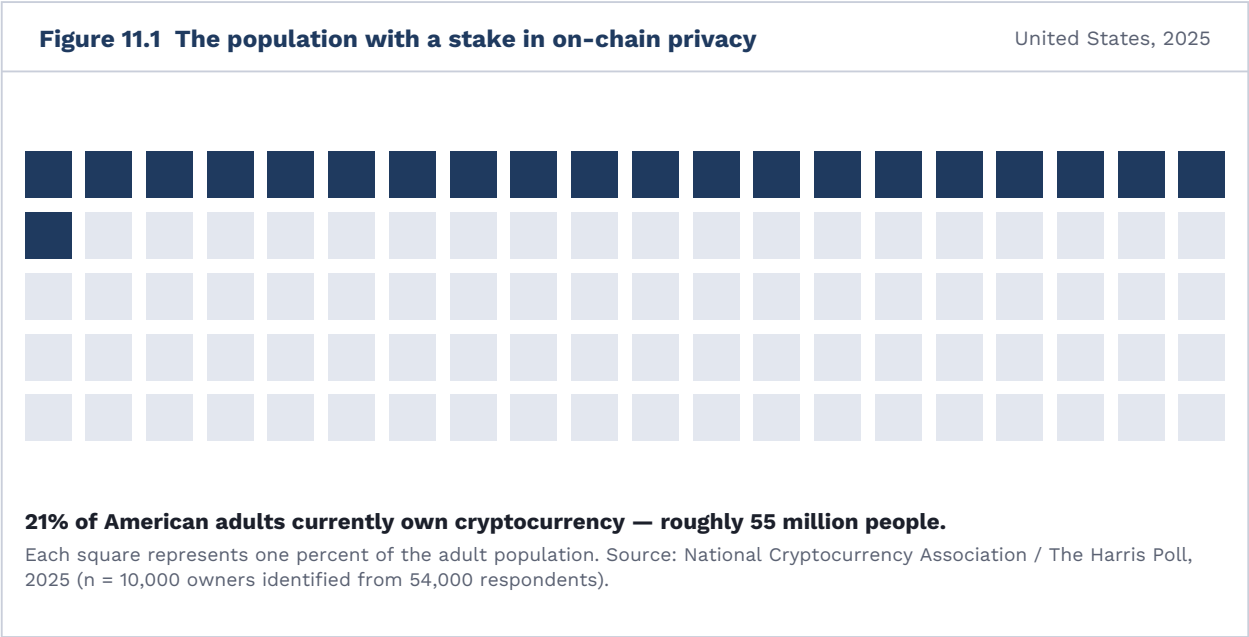


FIG. 11.1 This is not a fringe. It is a bloc the size of the combined populations of Florida and Illinois, and it is the bloc most directly affected by the precedent this case creates.

Those holders are not abstractions to criminals either. As custodial exchanges have hardened their defenses, attackers have moved down the stack to individuals — and, increasingly, to individuals in the physical world. The pattern of violent robbery targeting identifiable crypto holders, in which victims are located precisely because their balances were visible on-chain, is the clearest possible demonstration that ledger transparency is a safety problem and not merely a preference.



FIG. 11.2 The threat has migrated from institutions to individuals. Individuals are precisely the users a non-custodial privacy wallet exists to defend.

Set against that threat, the claim that privacy tooling is predominantly a criminal instrument does not survive contact with the base rates. The same analytics industry the government relies on for its evidence publishes annual estimates of how much on-chain activity is illicit. Those estimates are consistently a fraction of one percent of transaction volume. Whatever the correct policy response to that fraction may be, it cannot be the imprisonment of the people who wrote software used overwhelmingly by the other ninety-nine point some percent.

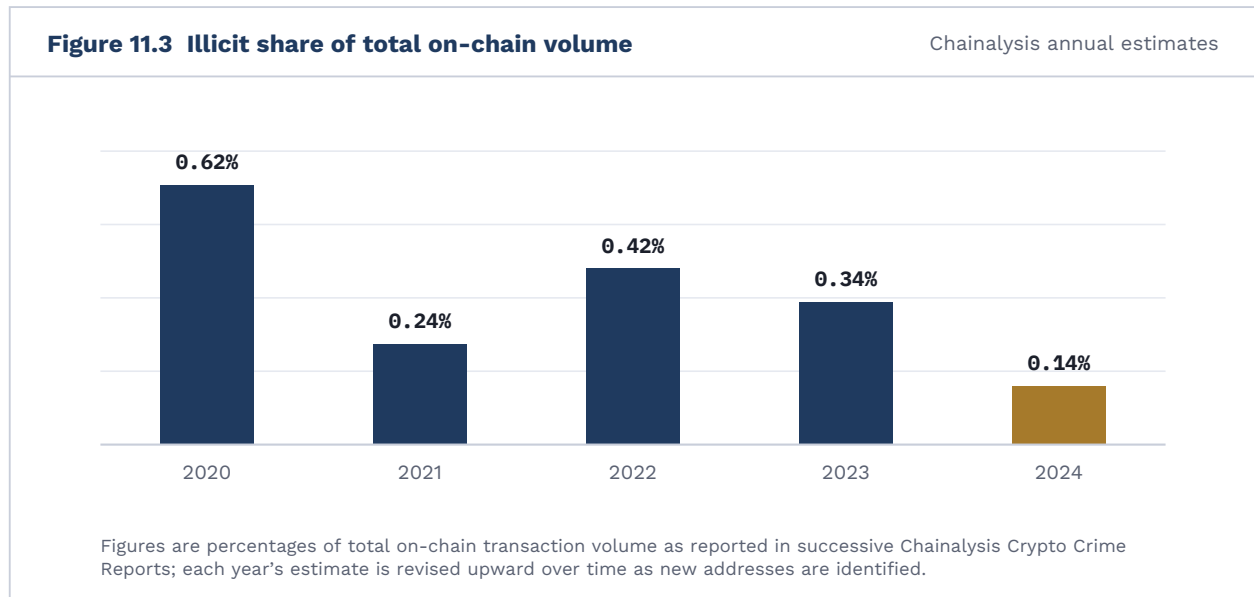


FIG. 11.3 Even at the high end of the range, more than ninety-nine percent of measured on-chain volume is not illicit. The defendants were sentenced as though the ratio ran the other way.

11.1 The users the record actually shows

- Ordinary holders who did not want their salary, savings, and spending readable by every counterparty they transact with — the overwhelming majority of any consumer wallet's user base.
- Journalists and their sources in jurisdictions where receiving a foreign payment is itself evidence of a crime.
- Small merchants who accepted Bitcoin and did not wish to publish their revenue to competitors in real time.
- Donors to politically disfavored but lawful causes, whose contributions on a transparent ledger are permanently attributable.
- Individuals at elevated physical risk — a category the 2025 theft data shows is growing, not shrinking.

SECTION 12

The Chilling Effect on American Code

A pardon in this case is not only an act of mercy toward two men. It is a correction to a precedent that currently prices the writing of privacy software in years of a developer's life. That precedent did not arrive by legislation. It arrived by prosecutorial choice, against published agency guidance, and it is already shaping where American engineers are willing to work.



FIG. 12.1 The sequence matters. The guidance the developers relied upon preceded the indictment by five years and was never withdrawn.

The downstream effect is not speculative. Open-source software is the substrate of the American technology economy; it is not a hobbyist subculture. Industry code audits consistently find open-source components in effectively every commercial codebase examined, comprising the majority of the code by volume. The people who maintain that substrate are, almost without exception, unpaid or underpaid volunteers with no legal department. A precedent that assigns criminal liability to a publisher of code for the downstream conduct of anonymous users is a precedent that those volunteers cannot insure against, cannot litigate, and can only avoid by leaving.

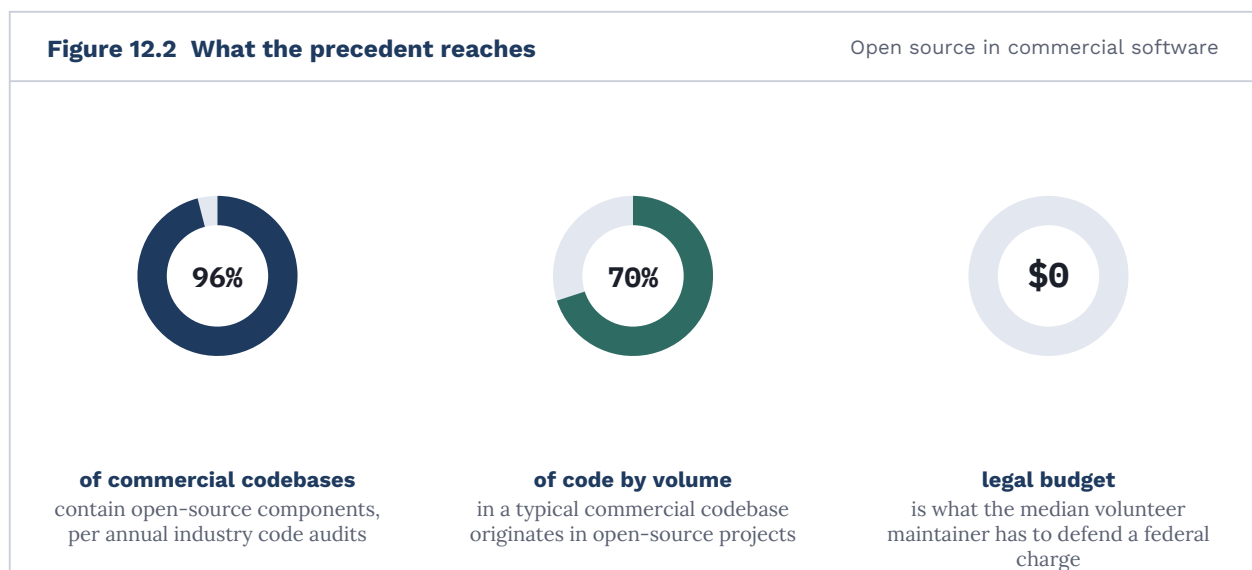


FIG. 12.2 Percentages one and two reflect the ranges consistently reported in annual open-source risk audits of commercial codebases. The third is illustrative of a category, not a survey result: the median maintainer has no legal budget at all.

The question the President is being asked to answer is narrow: should writing and publishing software, absent custody of anyone's money, be a federal felony? The prior administration answered yes. That answer can be reversed with a signature.

12.1 What the pardon signals

- To developers: that the United States distinguishes between building a tool and misusing one, and that the distinction is enforced at the highest level.
- To the agencies: that published guidance is a commitment the government is expected to honor, not a courtesy it may withdraw silently at charging time.
- To the courts: that the statutory overreach in this prosecution is understood as overreach by the executive branch itself.
- To the fifty-five million Americans who hold cryptocurrency: that their financial privacy is a legitimate interest and not presumptive evidence of guilt.

SECTION 13

Figure Sources and Methodology

Every figure in this addendum is drawn from a published third-party source or from facts stated in the record of the underlying prosecution. Where a figure is illustrative rather than surveyed, it is marked as such in its caption. No figure in this addendum is derived from an internal estimate.

- Figures 11.1 — National Cryptocurrency Association and The Harris Poll, 2025 State of Crypto Holders Report, based on 10,000 identified United States cryptocurrency owners drawn from a pool of 54,000 respondents surveyed in early 2025.
- Figure 11.2 — Chainalysis, 2025 Crypto Crime Mid-Year Update, reporting \$2.17 billion stolen from cryptocurrency services in the first half of 2025, personal-wallet compromises at 23.35 percent of year-to-date stolen-fund activity, and value stolen running 17 percent above the equivalent period in 2022.
- Figure 11.3 — Chainalysis Crypto Crime Reports, successive annual editions, illicit share of total on-chain transaction volume. Chainalysis states that each year's figure is revised upward in later editions as additional illicit addresses are identified; the figures shown are the published annual estimates.
- Figure 12.1 — FinCEN, Application of FinCEN's Regulations to Certain Business Models Involving Convertible Virtual Currencies, guidance dated May 9, 2019; United States District Court for the Southern District of New York docket in the underlying prosecution; Van Loon v. Department of the Treasury, United States Court of Appeals for the Fifth Circuit, November 2024.
- Figure 12.2 — Annual open-source risk and security audits of commercial codebases, which have for several consecutive years reported open-source components present in the mid-to-high nineties

percent of audited codebases and constituting the majority of code by volume. The third panel is illustrative of maintainer capacity, not a survey statistic.

- Figures 10.1 and 10.2 — Derived from the published Samurai Wallet source code and from the Bitcoin protocol’s public-ledger design. Both are verifiable by inspection and were available to the government before charges were filed.

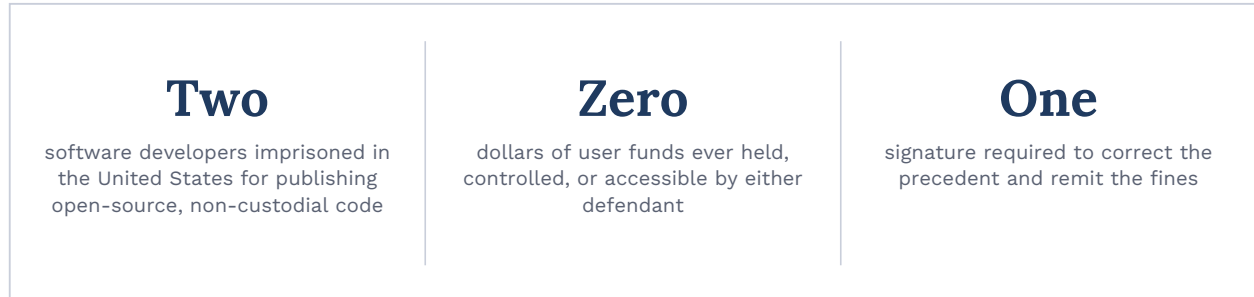


FIG. 13.1 *The case, reduced to the three facts that decide it.*

Prepared as a supplement to Sections 1 through 9. Nothing in this addendum modifies the relief requested: a full and unconditional pardon, remission of fines, and restoration of civil rights.